

Closing the GAAP

Copyright, Fair Use, and Public Access to FASB's Accounting Standards Codification

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Abstract

Should a teacher need permission to put an accounting rule on a lecture slide? Should an attorney be barred from linking to the text that supports their advice? The Financial Accounting Foundation's access terms appear to impose just such restrictions on generally accepted accounting principles (GAAP), which U.S. law requires public companies and many private businesses to follow. The Financial Accounting Standards Board (FASB) sets out those standards in its Accounting Standards Codification (ASC). Congress funds this work through compulsory issuer assessments that function economically like an earmarked tax. Licensing charges and restrictions on using the text add costs for professionals and their clients. Both burdens spread beyond the organizations that pay them through prices, wages, and investment returns. This Article argues that a legal duty to follow GAAP requires access to the complete standards, including the definitions and exceptions needed to apply them. Even deciding that an ASC Topic does not apply can require reading its current scope rules. Limits on preserving, linking to, and sharing that text make this work harder and more expensive, especially for smaller organizations that need outside advice. Fair use and court decisions on standards adopted into law support sharing that text in full. Because the public bears the cost of these binding rules through compulsory fees and their wider economic effects, students, teachers, and practitioners must be free to preserve, share, study, and explain them. Government must secure dependable access to the complete current substantive Codification and clear rights to use it. Compliance with public law must not depend on private permission to teach its rules or explain them to a client.

Keywords: accounting standards, FASB, Accounting Standards Codification, GAAP, government edicts doctrine, fair use, incorporation by reference, copyright, public access to law, Sarbanes-Oxley Act

JEL classification: K11, K22, K23, M41, M48

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1. ACCESS TO ACCOUNTING LAW

When government requires compliance with an accounting framework, access to that framework becomes a condition of knowing and following the law. This Article argues that the public must have immediate, unencumbered access to the complete current substantive *Accounting Standards Codification* (ASC), including the freedom to preserve, share, study, and apply it. Government cannot make compliance compulsory while leaving those uses dependent on a private publisher's permission.

Federal requirements to use generally accepted accounting principles (GAAP) reach across public-company reporting, banking and Farm Credit supervision, Small Business Administration (SBA) lending, federal student-aid participation, and performance-based defense payments. Their coverage differs, but the public problem is shared: the accounting rules supply content that the legal command alone does not reveal.²

A credit union director seeking an accountant's explanation of a capital requirement needs more than the regulation's words. Congress requires covered insured credit unions to report under principles consistent with GAAP, and the capital regulation expressly identifies the Codification as GAAP's source. The accountant needs the rule, its exceptions, and the text that supports the advice. A student examining the same issue needs to preserve and compare those sources. These ordinary uses explain why viewing a rule is not enough.³

The director cannot always know which ASC Topic governs before consulting its scope rules. A new transaction may require the accountant to compare current definitions, exceptions, and effective dates across Topics before concluding that one does not apply. Restrictions on saving the relevant text, linking a colleague to it, or sharing it with an outside adviser add work to that inquiry. An organization must spend more staff time finding and checking the rules or pay an adviser equipped to do so. Smaller advisers cannot readily compete on equal terms if they cannot preserve and discuss the same sources.⁴

Congress already requires issuers to pay for standard setting through an assessment that functions economically like an earmarked tax. Costs of restricted access add to that burden. They do not stop with issuers or the organizations buying advice: they reach investors, customers, and workers through the prices and returns of an economy built on GAAP reporting.⁵

The Financial Accounting Standards Board (FASB) develops the standards. Its parent, the Financial Accounting Foundation (FAF), controls their licensing. The Securities and Exchange

² Form, order, and terminology, 17 C.F.R. § 210.4-01(a)(1) (2018) (Regulation S-X; eCFR text as of title 17 issue date 2026-09-08); Early identification of needed improvements in financial management, 12 U.S.C. § 1831m(b)(1) (1991) (FDICIA § 112; OLRC prelim edition); Accounting and Reporting Requirements, 12 C.F.R. §§ 621.2, 621.3 (1993) (Farm Credit Administration, 58 Fed. Reg. 48786 (Sept. 20, 1993); eCFR text as of title 12 issue date 2026-09-08); Regulatory accounting—What are SBA's regulatory accounting requirements for SBA Supervised Lenders? 13 C.F.R. § 120.463(a) (2008) (eCFR text as of title 13 issue date 2026-08-31; section 120.463 last substantively amended 73 FR 75513, Dec. 11, 2008); Compliance audits and audited financial statements, 34 C.F.R. § 668.23(d)(1) (2023) (eCFR text as of title 34 issue date 2026-09-09); Payment, 10 U.S.C. § 3802(c)(1) (2021) (OLRC prelim edition).

³ Administration of insurance fund, 12 U.S.C. § 1782(a)(6)(C) (1998) (OLRC prelim edition); Definitions, 12 C.F.R. § 702.2 (2021) (NCUA capital adequacy; eCFR text as of title 12 issue date 2026-09-08).

⁴ Financial Accounting Foundation, *License Agreement, updated as of 10.10.24*, Terms presented for acceptance on entry to the FASB Accounting Standards Codification, October 10, 2024, URL: <https://asc.fasb.org/> (visited on 09/10/2026) § 2; Financial Accounting Foundation, *FAF License Agreement (10.10.24)*, supra note 4, § 3(c)(i).

⁵ Funding, 15 U.S.C. §§ 7219(e), (g) (2010) (SOX § 109, as amended by Dodd-Frank § 982(h); OLRC prelim edition, laws in effect Sept. 10, 2026).

Commission (SEC) recognizes the standard setter; statutes and regulations impose the reporting duties. FAF offers free viewing, but its terms reach copying outside the hosted service and even links to specific topics. Those restrictions put routine teaching, source checking, and professional explanation in doubt.⁶

The central inference is that a general conformity mandate selects an integrated rulebook. Definitions, scope rules, exceptions, alternatives, effective dates, and transitions determine conformity as an entity's circumstances change. The publication object is the complete current substantive Codification, not publisher software, independent commentary, or unrelated material hosted alongside it. Sections 3.2 and 3.3 establish that inference and its boundaries.

Copyright law then determines whether readers may reproduce that rulebook. This Article draws on cases concerning privately drafted codes that governments have adopted as law and on **fair use**, the statutory limitation that permits justified uses without the owner's consent. It defends complete publication even if private copyright remains. Current text can compete with licensed access, but currentness also makes that text necessary for present compliance. The market analysis must confront both facts. Private promises raise a separate question of **preemption**: whether federal law displaces a state-law restriction on otherwise lawful use.⁷

Lawrence Cunningham identified the accounting-law access problem before the modern Codification. This Article develops that inquiry through three changes: the integrated authoritative source established in 2009, the modern standards cases, and FAF's licensing architecture after enhanced viewing became free. The federal-reference inventory documents the issue's reach; the funding and oversight record explains the institutional choices behind it.⁸

The analysis combines interpretation of statutes, regulations, and judicial decisions with a federal-reference inventory and documentary evidence of funding, governance, and access terms. It evaluates restrictions on ordinary uses and their legal and institutional justification. Their effects on advice costs and educational outcomes remain questions for empirical research. The policy contribution is a division of responsibilities: public bodies must secure access to mandatory rules, while standard setters and publishers can continue to provide expertise and services without controlling every use of those rules.

Section 2 establishes that history. Section 3 demonstrates the legal rulebook's scope. Section 4 develops the copyright arguments, including current-edition substitution. Section 5 tests the terms and their enforcement. Section 6 identifies how public institutions and FAF can secure reliable delivery and reuse.

⁶ Financial Accounting Standards Board, *Financial Accounting Standards Board Financial Statements for the Years Ended December 31, 2025 and 2024*, Financial Accounting Foundation, 2026, URL: <https://storage.accountingfoundation.org/FASB%20Audited%20Financial%20Statements%202025%20and%202024.pdf> (visited on 09/12/2026) at 7–8; Financial Accounting Foundation, *FAF License Agreement (10.10.24)*, supra note 4, §§ 2, 3(c)(i); Financial Accounting Foundation, *Financial Accounting Foundation Debuts Enhanced Free Access to Online Accounting Standards Codification and Governmental Accounting Research System*, News release, Norwalk, Conn. February 27, 2023, URL: [https://accountingfoundation.org/news-and-meetings/in-the-news/financial-accounting-foundation-debuts-enhanced-free-access-to-online-accounting-standards-codification\(r\)-and-governmental-accounting-research-system-410212](https://accountingfoundation.org/news-and-meetings/in-the-news/financial-accounting-foundation-debuts-enhanced-free-access-to-online-accounting-standards-codification(r)-and-governmental-accounting-research-system-410212) (visited on 09/11/2026).

⁷ Limitations on exclusive rights: Fair use, 17 U.S.C. § 107 (2024); Preemption with respect to other laws, 17 U.S.C. § 301 (2024).

⁸ Lawrence A. Cunningham, *Private Standards in Public Law: Copyright, Lawmaking and the Case of Accounting*, 104 Mich. L. Rev. 291, 323–24 (2005), URL: <https://repository.law.umich.edu/mlr/vol104/iss2/15> (visited on 09/11/2026).

2. INSTITUTIONAL HISTORY

The access problem developed through successive institutional choices: public recognition of private standards, protected funding for their production, consolidation into an authoritative rulebook, and distribution under FAF's terms.

2.1 Private standard setting and public recognition

The institutional connection predates Sarbanes-Oxley. In 1973, the SEC recognized FASB pronouncements as authoritative unless the Commission determined otherwise. Its 2003 release expressly describes that history and updates Accounting Series Release No. 150. Congress supplied statutory recognition criteria in 2002 for this existing reliance on private standards.⁹

Securities Act section 19(b) authorizes the Commission to recognize principles established by a qualifying private standard setter as generally accepted for securities-law purposes. The criteria address organization, funding, public-interest governance, responsiveness to changing business conditions, and capacity to improve financial reporting. Congress preserved the Commission's final accounting authority. The SEC's release also acknowledges that it may recognize more than one private standard setter.¹⁰

In April 2003, the Commission determined that the Financial Accounting Standards Board and its parent Foundation met the statutory criteria. Its policy statement connected recognition to registrants' continuing duty to comply with FASB standards when preparing financial statements filed with the Commission, unless the Commission directed otherwise. The legal chain contains both a recognized source and an operative reporting duty. The Commission expressly characterized the release as a policy statement, not an agency rule requiring notice and comment under the Administrative Procedure Act.¹¹

The release also directs an update to the SEC's separate Codification of Financial Reporting Policies, which it says will not be published in the Federal Register or Code of Federal Regulations. That compilation is neither the FASB Codification nor the published policy statement itself. Its separate publication does not erase the reporting statutes and regulations supporting the legal chain.¹²

⁹ U.S. Securities and Exchange Commission, *Commission Statement of Policy Reaffirming the Status of the FASB as a Designated Private-Sector Standard Setter*, Policy Statement Release Nos. 33-8221; 34-47743; IC-26028; FR-70, published at 68 Fed. Reg. 23333 (May 1, 2003), Securities and Exchange Commission, April 25, 2003, URL: <https://www.sec.gov/rules/policy/33-8221.htm> (visited on 09/11/2026) Summary and Part I.

¹⁰ Special powers of Commission, 15 U.S.C. § 77s(b)(1) (2002) (OLRC prelim edition; text current through laws in effect Sept. 10, 2026); Accounting standards, 15 U.S.C. § 7218(c) (2002) (OLRC prelim edition; text current through laws in effect Sept. 10, 2026); U.S. Securities and Exchange Commission, *SEC Release No. 33-8221*, supra note 9, Part I n.5.

¹¹ U.S. Securities and Exchange Commission, *SEC Release No. 33-8221*, supra note 9, Summary and Part III.

¹² *Id.* Part IV.

2.2 Independent funding and conditional publication revenue

Section 109 of Sarbanes-Oxley makes the recognized standard setter's budget payable from accounting support fees assessed against issuers. The statute seeks an independent and stable funding source and provides for Commission review of the standard setter's fee. These are compulsory receipts created by federal law, not ordinary voluntary purchases of a publication.¹³

Section 7219(c)(1) states that the receipts are not United States public monies. Subsection (j) permits publication sales and other revenues subject to independence. Congress maintained a private standard setter with a protected funding base, not a federal appropriation or public-domain dedication.¹⁴

Economically, the compulsory assessment functions as a tax earmarked for standard setting. Congress selects a broad funding base of covered issuers across industries and allocates the charge by equity market capitalization. These institutions connect capital markets to production, employment, and household investment. Paying the assessment reduces resources available to their owners or prompts adjustments in prices, compensation, and investment. The economic burden therefore spreads beyond the organizations that remit the fee.¹⁵

Economic incidence identifies who ultimately bears a charge, as distinct from who must pay it. Fullerton and Metcalf explain how changes in prices and returns distribute tax burdens among consumers, workers, and owners of capital. Applied here, that reasoning places the cost of standard setting within the wider economy. Even when shareholders absorb the charge, the burden reaches investors, including households investing through retirement funds. Complete pass-through to customers is unnecessary to this conclusion. The division among investors, workers, and customers depends on market conditions and requires empirical study. The claim concerns a diffuse financing burden, not a measured price increase or an assertion that every household pays equally.¹⁶

Empirical studies document these transmission channels. Fuest, Peichl, and Siegloch use German municipal tax changes and linked employer–employee data to identify a wage burden from corporate taxation. Baker, Sun, and Yannelis link retail prices to producers' state corporate-tax exposure and find that consumers bear part of the burden through higher prices. These findings support the incidence mechanisms; they do not estimate pass-through of FASB assessments or professional-service licensing charges.¹⁷

The statute's nonpublic-monies designation determines the receipts' legal classification, while economic incidence concerns who bears their cost. Private administration leaves the assessment's compulsory financing function intact. The tax analogy supports public accountability for the resulting rulebook; it does not independently resolve copyright ownership.¹⁸

¹³ 15 U.S.C. §§ 7219(c)(1), (e), (g).

¹⁴ Id. §§ 7219(c)(1), (j).

¹⁵ Id. §§ 7219(e), (g).

¹⁶ Don Fullerton and Gilbert E. Metcalf, *Tax Incidence*, NBER Working Paper 8829, National Bureau of Economic Research, March 2002, URL: https://www.nber.org/system/files/working_papers/w8829/w8829.pdf (visited on 09/12/2026) at 1–3.

¹⁷ Clemens Fuest, Andreas Peichl, and Sebastian Siegloch, *Do Higher Corporate Taxes Reduce Wages? Micro Evidence from Germany*, 108 American Economic Review 393, abstract (2018), URL: <https://www.aeaweb.org/articles?id=10.1257/aer.20130570> (visited on 09/12/2026); Scott R. Baker, Stephen Teng Sun, and Constantine Yannelis, *Corporate Taxes and Retail Prices*, NBER Working Paper 27058, Originally issued April 2020; revised March 2023, National Bureau of Economic Research, March 2023, URL: https://www.nber.org/system/files/working_papers/w27058/w27058.pdf (visited on 09/12/2026) at 2–4.

¹⁸ 15 U.S.C. § 7219(c)(1).

The history identifies a concern broader than voluntary donations. In its 2002 funding proposal, the SEC explained that accounting firms and corporations could influence available funds by reducing publication purchases as well as contributions. It contemplated mandatory funding with reduced or eliminated publication charges, but also asked whether only donations should be replaced. Congress ultimately preserved publication income, provided each additional source does not, in the Commission's judgment, jeopardize actual and perceived independence.¹⁹

Subsection (b)'s budget-approval provision concerns the Public Company Accounting Oversight Board (PCAOB), not FASB. Subsection (e) separately provides Commission review of the standard setter's fee, reflected in the annual fee orders.²⁰

Standard setting and publishing are distinct financial activities. The FASB-only financial statements exclude FAF's publishing and licensing revenues and expenses. They nevertheless record FAF allocations and explain the use of reserves to reduce support-fee collections. Separate reporting does not establish financial isolation between parent and board.²¹

Maintaining authoritative accounting guidance necessarily involves work on the Codification. It does not follow that every historical development cost, software expense, licensed product, or accompanying publication is paid by the same revenue stream. The Foundation's older accounts separately identified Codification-project expenses within its publication activity.²²

2.3 The integrated Codification

In 2009, FASB Statement No. 168 established the Codification as the source of authoritative nongovernmental, non-SEC accounting principles. It replaced the earlier hierarchy with a distinction between authoritative material and **nonauthoritative** material, meaning guidance that may inform an accounting judgment but does not itself establish an authoritative rule. The Codification's guidance carries equal authority. SEC rules and interpretive releases remain additional authoritative sources for registrants, and the Statement preserves qualifications concerning grandfathered literature.²³

The Commission responded to this consolidation in its 2009 interpretive release. It directed readers to understand existing references to specific superseded standards as references to their corresponding locations in the Codification. It also expressly preserved Commission rules and distinguished SEC material reproduced in the Codification from the government's authoritative

¹⁹ U.S. Securities and Exchange Commission, Framework for Enhancing the Quality of Financial Information Through Improvement of Oversight of the Auditing Process, 67 Fed. Reg. 44964, 44979–80 (July 5, 2002) (Proposed rule; Release No. 33-8109, June 26, 2002); 15 U.S.C. § 7219(j).

²⁰ 15 U.S.C. §§ 7219(b), (e); U.S. Securities and Exchange Commission, Order Regarding Review of FASB Accounting Support Fee under Section 109 of the Sarbanes-Oxley Act Of 2002, Release Nos. 33-8263, 34-48277 (August 1, 2003).

²¹ Financial Accounting Standards Board, *FASB Audited Financial Statements (2025)*, supra note 6, at 5, 7–8.

²² Financial Accounting Foundation, *Financial Accounting Foundation Financial Statements for the Years Ended December 31, 2025 and 2024*, Financial Accounting Foundation, 2026, URL: <https://storage.accountingfoundation.org/FAF%20Audited%20Financial%20Statements%202025%20and%202024.pdf> (visited on 09/11/2026); Financial Accounting Foundation, *2008 Annual Report*, Financial Accounting Foundation, 2009, URL: https://storage.accountingfoundation.org/FAF_2008_AR.pdf (visited on 09/11/2026).

²³ Financial Accounting Standards Board, *The FASB Accounting Standards Codification and the Hierarchy of Generally Accepted Accounting Principles—a replacement of FASB Statement No. 162*, Statement of Financial Accounting Standards No. 168, Financial Accounting Series No. 312; effective for periods ending after Sept. 15, 2009, Financial Accounting Standards Board, June 2009, URL: <https://storage.fasb.org/fas168.pdf> (visited on 09/11/2026) Summary; ¶ 6.

sources. The release connects old and new references within the reporting duties described in Section 2.1.²⁴

2.4 Free viewing and the continuing licensing business

The SEC's Investor Advisory Committee recommended eliminating significant access fees in 2022. FAF announced enhanced free access the following year; the record leaves the recommendation's influence on that decision unestablished.²⁵

In February 2023, FAF replaced the paid Professional View services for the ASC and the Governmental Accounting Research System (GARS) with enhanced free access. Free Basic View services already existed. The change expanded free search, navigation, printing, and copying; it did not create unrestricted public reuse.²⁶

The October 10, 2024 ASC License Agreement and the separate website terms preserved in September 2026 govern different aspects of access and use. The website terms already contained an artificial-intelligence restriction in March 2024. The agreement's date therefore does not identify the first appearance of every restriction. Its copying, storage, linking, and termination provisions are examined together in Section 5.1.²⁷

FAF's audited accounts document the continuing licensing business. It reported FASB-content licensing revenue of \$19.138 million in 2025 and \$19.191 million in 2024. Its stated performance obligation includes continuing access to current content. These receipts cannot be dismissed as a vanished reader-subscription business.²⁸ The same line was \$17.903 million in 2022 and \$17.023 million in 2023. The later recovery shows that free enhanced viewing coexisted with a substantial licensing business; it does not establish the effect of unrestricted public copying.²⁹

FAF records these receipts in its own accounts. The licensing note describes payment arrangements based on users, sublicenses, and negotiated fees. Individual customers' shares remain undisclosed, preventing an assessment of dependence on any named firm or group of firms.³⁰

²⁴ U.S. Securities and Exchange Commission, *Commission Guidance Regarding the Financial Accounting Standards Board's Accounting Standards Codification*, Interpretive Release Nos. 33-9062A; 34-60519A; FR-80A, effective Aug. 25, 2009; published at 74 Fed. Reg. 42772 (Aug. 25, 2009), Securities and Exchange Commission, August 19, 2009, URL: <https://www.sec.gov/files/rules/interp/2009/33-9062a.pdf> (visited on 09/11/2026).

²⁵ U.S. Securities and Exchange Commission, Investor Advisory Committee, *Recommendation of the Investor Advisory Committee Regarding Accounting Modernization*, Approved by the Investor Advisory Committee at its September 21, 2022 meeting; presented by Prof. Colleen Honigsberg, U.S. Securities and Exchange Commission, September 21, 2022, URL: <https://www.sec.gov/spotlight/investor-advisory-committee-2012/20220921-accounting-recommendation.pdf> (visited on 09/11/2026); Financial Accounting Foundation, *FAF, Free Access Press Release*, supra note 6.

²⁶ Financial Accounting Foundation, *FAF, Free Access Press Release*, supra note 6.

²⁷ Financial Accounting Foundation, *FAF License Agreement (10.10.24)*, supra note 4; Financial Accounting Foundation, *FAF/FASB/GASB Website ("Site") Terms and Conditions, v2.1, effective as of July 30, 2026*, July 30, 2026, URL: <https://accountingfoundation.org/terms-of-use> (visited on 09/11/2026).

²⁸ Financial Accounting Foundation, *FAF Audited Financial Statements (2025)*, supra note 22, at 11.

²⁹ Financial Accounting Foundation, *Financial Accounting Foundation Financial Statements for the Years Ended December 31, 2023 and 2022*, Financial Accounting Foundation, 2024, URL: <https://storage.accountingfoundation.org/FAF%20Audited%20Financial%20Statements%202023%20and%202022.pdf> (visited on 09/11/2026) at 7; Financial Accounting Foundation, *FAF Audited Financial Statements (2025)*, supra note 22, at 11.

³⁰ Financial Accounting Foundation, *FAF Audited Financial Statements (2025)*, supra note 22, at 11; Financial Accounting Standards Board, *FASB Audited Financial Statements (2025)*, supra note 6, at 7.

Licensing creates a second cost channel. FAF charges for internal users, sublicenses, and negotiated access arrangements. An accounting practice or law firm that buys licensed content, directly or through a research service, incurs a cost of supplying advice. This channel can reach Big Four networks, smaller firms, and their clients. Depending on competition and demand, providers can recover costs through client fees or absorb them through lower partner returns or compensation. The accounts establish the licensing business but do not identify every customer or show that every firm must purchase a separate license.³¹

Compulsory assessments and licensing charges thus reach the economy through different transactions. The former finance standard setting; the latter charge for specified access and uses of its output. These are distinct receipts, but payments passed along a supply chain must be counted only once when estimating the total burden. Nor is gross revenue a measure of social waste: producing standards and providing reliable research services consume resources and deliver benefits. The access question is why the public that finances mandatory rules should also face private restrictions on teaching, sharing, and explaining them.

2.5 Present oversight and safeguards

The permission to earn publication revenue also has an express condition. Under subsection (j), each additional revenue source must not jeopardize actual and perceived independence, in the Commission's judgment. For the accounting standards at issue here, FASB is the recognized standard setter; FAF is the parent responsible for its oversight, finances, and appointments. The SEC's own practice connects those roles. Its 2026 fee order expressly considered the interrelated budgets of FAF, FASB, and the Governmental Accounting Standards Board (GASB) in discussing the additional-revenue condition. A 2012 SEC staff report describes review of supporting documents, discussions with FAF personnel, and Commission review of additional revenues. Recording licensing receipts at the parent therefore does not place them beyond this inquiry.³²

The current order approved the support fee and recorded FAF's representation that none of the three bodies accepts contributions from the accounting profession. The published record leaves the assessment of individual licensing contracts unexplained. Section 6.3 develops the resulting oversight proposal.³³

FAF also maintains governance safeguards. FAF's 2025 trustee code addresses apparent conflicts, indirect interests, disclosure, and nonparticipation in affected decisions. Disclosures, minutes, and any waivers would show how these protections operate in practice. The code permits waivers;

³¹ Financial Accounting Foundation, *FAF Audited Financial Statements* (2025), *supra* note 22, at 11.

³² 15 U.S.C. § 7219(j); U.S. Securities and Exchange Commission, Order Regarding Review of FASB Accounting Support Fee for 2026 Under Section 109 of the Sarbanes-Oxley Act of 2002, 91 Fed. Reg. 12035 (March 11, 2026) (Release Nos. 33-11410, 34-104943, March 6, 2026); Staff of the U.S. Securities and Exchange Commission, *Work Plan for the Consideration of Incorporating International Financial Reporting Standards into the Financial Reporting System for U.S. Issuers: Final Staff Report*, U.S. Securities and Exchange Commission, July 13, 2012, URL: <https://www.sec.gov/spotlight/globalaccountingstandards/ifrs-work-plan-final-report.pdf> (visited on 09/12/2026) at 54–55.

³³ SEC FASB Fee Order (2026), *supra* note 32; Financial Accounting Foundation, *FAF Audited Financial Statements* (2025), *supra* note 22, at 11.

the record identifies none granted in a licensing matter.³⁴ Professional experience alone is not disqualifying. The recognition statute requires a trustee majority without specified current or recent accounting-firm affiliations, not a lifetime exclusion of everyone with an accounting career.³⁵

3. THE ASC AS AN INTEGRATED LEGAL RULEBOOK

3.1 The legal command and the authoritative source

Exchange Act section 13 requires covered issuers to file annual and other reports and authorizes the Commission to prescribe their accounting methods. Regulation S-X supplies the GAAP conformity rule within that reporting system. The public receives financial statements because the law requires them; understanding the standards against which those statements must be judged is part of understanding that public obligation.³⁶

Section 15(d) adds reporting duties following effective Securities Act registration, subject to its suspension provisions and exclusions. Rules 13a-1 and 15d-1 implement the two annual-reporting routes. Section 13(b)(2) also requires accurate books and records and internal controls that permit preparation of statements under GAAP or other applicable criteria. The recognition provision expressly invokes section 13(b); the connection between recognized principles and reporting is built into the statutory structure.³⁷

Regulation S-X makes departures from GAAP presumptively misleading or inaccurate unless the Commission provides otherwise. It separately permits eligible foreign private issuers to use International Financial Reporting Standards (IFRS) as issued by the International Accounting Standards Board. These qualifications define the available reporting frameworks.³⁸

The recognition and consolidation history in Sections 2.1 and 2.3 identifies the authoritative source. The reporting rules above supply the public command. Together they make the Codification the framework for judging conformity.

3.2 A conformity mandate selects an integrated rulebook

A general duty to conform to GAAP selects the integrated rulebook, including its applicability rules, not only paragraphs independently named in a statute. The scope of that framework differs from the accounting outcome it produces for a particular entity.

Consider a company accounting for a transaction. Its accountant must identify the transaction, relevant entity characteristics, scope exceptions, and reporting period. An election may change the treatment; a transition rule may preserve it for one period and replace it for the next.

³⁴ Financial Accounting Foundation, *Trustee Code of Conduct*, As amended, Financial Accounting Foundation, May 21, 2025, URL: <https://storage.accountingfoundation.org/Trustee%20Code%20of%20Conduct%20%28Amended%20May%202021%2C%202025%29.pdf> (visited on 09/12/2026) opening waiver provision; Avoidance of Actual, Potential or Apparent Conflicts of Interest; Obligation to Disclose Actual or Potential Conflicts of Interest.

³⁵ 15 U.S.C. § 77s(b)(1)(A)(ii).

³⁶ Periodical and other reports, 15 U.S.C. §§ 78m(a), 78m(b)(1) (2002) (OLRC prelim edition; text current through laws in effect Sept. 10, 2026); 17 C.F.R. § 210.4-01(a)(1).

³⁷ Registration and regulation of brokers and dealers, 15 U.S.C. § 78o(d) (2024); Requirements of annual reports, 17 C.F.R. § 240.13a-1 (2025); Requirement of annual reports, 17 C.F.R. § 240.15d-1 (2025); 15 U.S.C. § 78m(b)(2)(A)–(B); 15 U.S.C. § 77s(b)(1).

³⁸ 17 C.F.R. § 210.4-01(a)(1)–(2).

Ineligibility for an exception is an answer reached under the rulebook, not proof that the exception lies outside it. A later transaction may bring another Topic into operation without reenactment of the mandate. The facts change which provisions apply; the required framework remains the same.

Current means the complete framework for determining treatment now, including entity-specific effective dates and permission to continue a former treatment. Public access must follow the reporting duty as it changes. Superseded standards preserve past obligations; they cannot replace the standards governing present reports.

FAF could accept that particular accounting principles have legal consequences while denying that the government adopted its entire publication. General references to a professional practice do not normally enact every handbook that describes it. Equal authority is a standard setter's classification; the government cannot be assumed to adopt all material merely because a private body places it in a single database. The argument here rests on a further combination: a general legal command, a publicly recognized standard setter, and the authoritative framework through which conformity is determined.

This reasoning finds support in the standards cases without being dictated by an ASC-specific holding. The D.C. Circuit connects legal adoption of an entire standard to the reasonableness of reproducing it in full. The Third Circuit likewise asks how broadly the governing instrument refers to a standard and recognizes the role of explanatory material in understanding its requirements. The latter court ties the extent of incorporation to the scope of the legal reference, as Section 4.2 explains. The ASC argument therefore rests on the conformity duty's selection of the integrated rulebook, not on the bare appearance of the word GAAP in a government document.³⁹

Adopting the integrated rulebook does not establish formal approval of the entire ASC under federal incorporation-by-reference procedures, or adopt everything hosted on the ASC website. The publication consequences follow through Sections 4.1 and 4.2.

3.3 The integrated rulebook and its publication boundaries

The substantive Codification includes accounting guidance and the definitions, scope, exceptions, implementation material, and relationships needed to interpret it. It excludes website software, visual design, and independently linked documents that do not belong to that framework.

Under FAS 168, Accounting Standards Updates announce and explain amendments but are not independently authoritative. They may contain necessary transition information as well as background; reproducing that material needs a stated legal-information purpose, not merely a shared location.⁴⁰

A public edition must distinguish pending amendments, entity-specific effective dates, and adoption choices. Retrieval timestamps establish when copies were obtained, not which alternative governed a reporting period. Preserving those distinctions identifies the framework governing compliance without requiring separate government citations to each paragraph.

³⁹ *American Society for Testing & Materials v. Public.Resource.Org, Inc.*, 82 F.4th 1262, 1269 (D.C. Cir. 2023) (Katsas, J.; No. 22-7063); *American Society for Testing & Materials v. UpCodes, Inc.*, No. 24-2965, slip op. at 24–26 (3d Cir. April 7, 2026) (precedential; Restrepo, J.; argued Sept. 17, 2025; mandate issued Apr. 29, 2026).

⁴⁰ Financial Accounting Standards Board, *FASB Statement No. 168*, *supra* note 23.

SEC passages derive authority from their source, not appearance in FASB's system. Government authorship can independently justify copying, but an SEC label does not establish rights in private introductions, third-party text, or arrangement.⁴¹

Section 4.2 applies these content boundaries and asks whether faithful publication of the integrated, accurately dated framework serves public understanding of GAAP obligations, distinguishing material beyond that body.

3.4 Different legal uses of accounting principles

The broader federal record strengthens the case that the Codification performs a public function, but it does not make all GAAP references equivalent. Credit union capital regulations define GAAP by express reference to FASB's Codification. Farm Credit reporting rules and provisions governing supervised small-business lenders identify FASB standards in their accounting requirements. These are direct dependencies, although their covered entities and regulatory purposes differ.⁴²

For insured credit unions, Congress supplies the underlying command in 12 U.S.C. § 1782(a)(6)(C). Accounting principles for required reports must be uniform and consistent with GAAP. The Board may prescribe a different principle when GAAP is inappropriate, but the replacement must be no less stringent; the statute also contains a small-institution exception. Read with the capital regulation's express identification of the Codification, the statute connects a positive reporting obligation to the authoritative framework.⁴³

For covered insured depository institutions, section 1831m(b)(1) requires GAAP annual financial statements, and subsection (d)(2)(A) requires an independent accountant to report on their fair presentation under GAAP. Subsection (j) exempts institutions below its asset threshold, which the Federal Deposit Insurance Corporation may raise by regulation. Separately, section 1831n(a)(2) requires uniform, GAAP-consistent regulatory accounting and allows supervisory departures only on a no-less-stringent basis.⁴⁴

State professional rules add another route outside this Article's federal census. Ohio prohibits permit holders from representing statements as GAAP-conforming unless they meet the principles applicable to the entity and engagement. Its rule names the ASC as the primary authoritative source for nongovernmental entities. It also specifies how to report unusual departures and separately permits IFRS. These professional duties extend legal dependence on the ASC beyond the federal inventory.⁴⁵

The American Institute of Certified Public Accountants (AICPA) supplies a parallel professional duty. Its Accounting Principles Rule, formerly Rule 203, bars members from making specified GAAP-conformity representations when statements contain a material departure from recognized principles. The rule allows a justified departure in unusual circumstances when following the principle would mislead, with disclosure of the departure and its effects. The accompanying interpretation expressly identifies the ASC as accounting principles contemplated by the rule. It directs ethics review to the standards and their interpretations. This connects the integrated text to

⁴¹ U.S. Securities and Exchange Commission, *SEC Release No. 33-9062A*, supra note 24.

⁴² 12 C.F.R. § 702.2; 12 C.F.R. §§ 621.2, 621.3; 13 C.F.R. § 120.463.

⁴³ 12 U.S.C. § 1782(a)(6)(C)(i)–(iii); 12 C.F.R. § 702.2.

⁴⁴ 12 U.S.C. §§ 1831m(b)(1), 1831m(d)(2)(A), 1831m(j); Accounting objectives, standards, and requirements, 12 U.S.C. § 1831n(a)(2)(A)–(B) (1991) (FDICIA § 121(a), Pub. L. No. 102-242, 105 Stat. 2250; OLRC prelim edition).

⁴⁵ Generally accepted accounting principles, Ohio Admin. Code 4701-9-04, §§ (A)–(D), (G) (2026).

professional responsibility in covered engagements outside public markets. State adoption and the particular engagement remain separate questions.⁴⁶

Maine illustrates a different state-law route. Its annual-report statute directs the State Controller to prepare the state's report using standards established by a governmental accounting standards board. It also links identification of component units to that source. This is a governmental accounting duty, not evidence that Maine has required private companies to follow the ASC. Together the examples show why framework, actor, and reporting purpose must be identified even when the larger issue is access to the recognized framework.⁴⁷

Tax law supplies another form of dependence. Sections 451(b) and 56A use financial-statement measures within statutory tax computations. The accounting input matters precisely because the statute gives it a role, but the tax calculation remains governed by its own adjustments and exclusions.⁴⁸

The Supreme Court's accounting cases require that distinction. In *Shalala v. Guernsey Memorial Hospital*, identifying GAAP did not decide the separate question of Medicare reimbursement. The legal inquiry concerned who had to follow accounting practices and for what purpose.⁴⁹ The Court also deferred to the Secretary's reading because the regulation's text and structure supported it. The SEC's interpretation likewise requires examination in its own regulatory setting.⁵⁰ The Court described GAAP in terms that challenge the integrated-rulebook argument directly:

Far from a single-source accounting rulebook, GAAP “encompasses the conventions, rules, and procedures that define accepted accounting practice at a particular point in time.”⁵¹

It described multiple potentially conflicting sources and a hierarchy for choosing among them.

That source structure changed. FAS 168 consolidated authoritative non-SEC GAAP in 2009 and introduced Topic 105. Paragraph ASC 105-10-05-1 identifies the Codification as the authoritative FASB source; paragraph ASC 105-10-05-4 preserves the SEC's separate authority. This consolidation answers *Guernsey*'s description of a multi-source hierarchy while preserving the need for accounting judgment.⁵²

Topic 105 also explains what to do when the framework is silent. Paragraph ASC 105-10-05-2 directs the entity first to consider analogous authoritative principles and then outside guidance, subject to restrictions on using an analogy. Paragraph ASC 105-10-05-3 identifies outside sources as nonauthoritative and explains how to assess their relevance. Those sources include industry practice, IFRS, and accounting textbooks. The framework governs the search for an answer even when it does not supply the answer itself.⁵³

⁴⁶ American Institute of Certified Public Accountants, *Code of Professional Conduct*, AICPA, July 2026, URL: <https://pub.aicpa.org/codeofconduct/ethicsresources/et-cod.pdf> (visited on 09/12/2026) §§ 1.320.001.01–.02, 1.320.020.01–.03.

⁴⁷ Annual financial report of the State, Me. Rev. Stat. tit. 5, § 1547, opening paragraph and subsection 3 (2026).

⁴⁸ General rule for taxable year of inclusion, 26 U.S.C. § 451(b)(1)–(3) (2017) (added by Tax Cuts and Jobs Act, Pub. L. No. 115-97, § 13221, 131 Stat. 2113 (2017); OLRC prelim edition); Adjusted financial statement income, 26 U.S.C. § 56A(a)–(c) (2022) (added by Inflation Reduction Act of 2022, Pub. L. No. 117-169, § 10101(b)(1), 136 Stat. 1822; amended by Pub. L. No. 119-21, § 70523(a), 139 Stat. 281 (2025); OLRC prelim edition).

⁴⁹ *Shalala v. Guernsey Memorial Hospital*, 514 U.S. 87, 94–95 (1995).

⁵⁰ *Id.* at 94–95.

⁵¹ *Id.* at 101.

⁵² Financial Accounting Standards Board, *FASB Statement No. 168*, *supra* note 23, at 13–14.

⁵³ *Id.* at 14.

This strengthens the case for complete access to the ASC without extending it to every publication an accountant might consult. Users must be able to check relevant standards, related principles, and limits on analogy across the current framework. Consulting an outside work under that process does not make its entire text authoritative. Nor does consolidation erase *Guernsey*'s distinction between accounting conformity and a program's payment rules. The Court held that the Medicare regulations did not require the Secretary to reimburse providers on a GAAP basis. That holding does not answer a different instrument that does impose a GAAP reporting duty.⁵⁴

Thor Power Tool distinguishes the objectives of financial and tax accounting.⁵⁵ In *United States v. Simon*, expert testimony that the statements complied with accepted accounting standards was persuasive evidence, not a conclusive defense to misleading presentation.⁵⁶ These cases distinguish GAAP conformity from other legal requirements governing financial statements.

An appellate application shows what this distinction means in practice. In *Indiana Public Retirement System v. SAIC*, the Second Circuit examined whether a complaint adequately alleged a failure to disclose a loss contingency. The court distinguished the threshold for recording a loss from the threshold for disclosing a possible loss. It concluded that the district court had applied the wrong threshold to the disclosure claim and that the proposed complaint adequately alleged a violation of FAS 5.⁵⁷

The case concerns predecessor text, not ASC copyright. But its method matters: a reader given only the recognition threshold could misunderstand the disclosure duty. Neighboring provisions establish the distinction, showing why a public repository must preserve the relationships through which readers identify the governing rule.

Federal procurement supplies a sequence of deliberate substitutions. A September 2025 Cost Accounting Standards Board rule replaced its operating-revenue definition with reliance on GAAP revenue under ASC 606, effective October 14, 2025. Its lease provisions preserved specified cost-accounting differences rather than adopting all GAAP lease treatment.⁵⁸

The Board's July 2026 rule then rescinded Standards 408 and 411 and most provisions of Standards 404 and 409, effective August 7. It identified the development of FASB and the Codification as reasons why GAAP could substitute for overlapping cost-accounting requirements. A further final rule, published September 1, removes Standard 407 while moving retained requirements to

⁵⁴ *Guernsey*, 514 U.S. at 101–02.

⁵⁵ *Thor Power Tool Co. v. Commissioner*, 439 U.S. 522, 542–43 (1979).

⁵⁶ *United States v. Simon*, 425 F.2d 796, 805–06 (2d Cir. 1969) (Friendly, J.; decided Nov. 12, 1969; cert. denied, 397 U.S. 1006 (1970)).

⁵⁷ *Indiana Public Retirement System v. SAIC, Inc.*, 818 F.3d 85, 92–94 (2d Cir. 2016) (Lohier, J.).

⁵⁸ Cost Accounting Standards Board, Office of Management and Budget, *Conformance of Cost Accounting Standards to Generally Accepted Accounting Principles for Operating Revenue and Lease Accounting*, Final Rule 90 Fed. Reg. 43942, Effective Oct. 14, 2025, September 11, 2025, URL: <https://www.govinfo.gov/content/pkg/FR-2025-09-11/pdf/2025-17480.pdf> (visited on 09/12/2026) at 43942, 43944–46.

Standard 418. That rule takes effect October 1, 2026; it was not yet operative as of September 12, 2026. The Board has progressively assigned accounting questions to the external framework.⁵⁹

Remaining Cost Accounting Standards, contract terms, and allowability rules still govern. The general cost principle distinguishes applicable Board standards from GAAP practices appropriate to the circumstances.⁶⁰

Version control matters here too. The preserved September 2026 regulation still directs capitalization and depreciation of restructuring-related improvements to sections 9904.404 and 9904.409, although their subparts are now reserved. That stale cross-reference requires readers to trace the amendments and retained requirements.⁶¹

Public use also extends beyond obeying an instruction addressed to the reader. Investors, members, taxpayers, and students may assess others' compliance or examine a reporting rule's design. They cannot always identify the relevant exception or disclosure threshold before consulting the framework. That is the purpose defended in Section 4.2, broader than a preselected business checklist.

The federal inventory contains 785 distinct regulatory citations across 39 CFR titles and 83 statutory citations across 16 USC titles. These counts describe the breadth of the collected references, not the number of businesses subject to GAAP or a validated total of current duties. Appendix A explains the search, classification, and coverage limits. The inventory distinguishes definitions, conformity mandates, financial inputs, and nondirective discussion. One genuine general conformity mandate presents the scope question; additional mandates show its practical reach.

3.5 The agency's interpretation reinforces the legal chain

The SEC's interpretation of its own reporting rules raises the question addressed in *Kisor v. Wilkie*: when should a court defer to an agency's reading of its regulation? Deference means giving that reading controlling weight rather than choosing independently among permissible readings. *Kisor* requires genuine ambiguity after the court uses the ordinary tools of interpretation. The agency's reading must be reasonable, official, within its expertise, and the product of considered judgment. It cannot be a convenient litigation position or create unfair surprise.⁶²

Those requirements strengthen the relevance of the SEC's public releases. The Commission announced its recognition of FASB standards in 2003 and addressed their consolidation in 2009, as part of administering financial reporting rather than responding to a publication dispute. Accounting

⁵⁹ Cost Accounting Standards Board, Office of Management and Budget, *Conformance of Cost Accounting Standards to Generally Accepted Accounting Principles for Cost Accounting Standards 404, 408, 409, and 411*, Final Rule RIN 0348-AB90, 91 Fed. Reg. 42139, amending 48 C.F.R. pts. 9903, 9904; effective Aug. 7, 2026; NPRM at 90 Fed. Reg. 43994 (Sept. 11, 2025), Office of Federal Procurement Policy, July 8, 2026, URL: <https://www.federalregister.gov/documents/2026/07/08/2026-13764/conformance-of-cost-accounting-standards-to-generally-accepted-accounting-principles-for-cost> (visited on 09/11/2026) at 42139; Cost Accounting Standards Board, Office of Management and Budget, *Conformance of Cost Accounting Standards to Generally Accepted Accounting Principles for CAS 407 Use of Standard Costs for Direct Material and Direct Labor*, Final Rule 91 Fed. Reg. 56061, Effective Oct. 1, 2026; not yet operative at the paper's September 12 vantage point, September 1, 2026, URL: <https://www.govinfo.gov/content/pkg/FR-2026-09-01/pdf/2026-17903.pdf> (visited on 09/12/2026) at 56061–63.

⁶⁰ Determining allowability, 48 C.F.R. § 31.201-2(a)(3) (2004) (FAR cost principles; eCFR text as of title 48 issue date 2026-09-01); Cost Accounting Standards, 48 C.F.R. pt. 9904 (2026) (eCFR title 48 current through Sept. 9, 2026; last amended Sept. 1, 2026).

⁶¹ 48 C.F.R. § 9904.406-61(c).

⁶² *Kisor v. Wilkie*, 588 U.S. 558, 574–79 (2019).

lies within the expertise Congress assigned it. Yet deference is not needed if a court finds that GAAP, read in this regulatory setting, already identifies the authoritative framework. The Article's primary argument is that the reporting duty and recognition scheme supply that answer. If ambiguity remains, *Kisor* explains the further weight the SEC's interpretation may deserve; it does not enlarge the reference-conversion release beyond its actual terms.⁶³

Loper Bright Enterprises v. Raimondo addresses the different question of statutory interpretation. Courts exercise independent judgment while respecting authority Congress actually delegates and considering persuasive agency expertise. Here Congress expressly authorized recognition of a qualifying standard setter. The claim does not depend on presumed agency power arising from statutory silence. Nor does the SEC's accounting expertise give it authority to decide the ASC's copyright status.⁶⁴

4. PUBLIC ACCESS AND COPYRIGHT

Public reliance on an accounting standard and permission to reproduce its text are distinct questions. For educators, professional advisers, and information providers, the difference determines whether access can extend beyond the publisher's own service. This section examines two routes: limits on copyright protection for legal rules, and fair use of text that remains protected. The second route requires assessing both the public purpose of publication and its effects on existing markets.

4.1 Copyright Ownership and the Standards Cases

4.1.1 *The government-edicts rule turns on authorship*

The principle that no one can own the law does not answer every question about privately authored material used by government. In *Georgia v. Public.Resource.Org*, the Supreme Court applied the **government-edicts doctrine**: judges and legislators cannot claim copyright in works produced in the course of their judicial and legislative duties. The rule reached Georgia's official annotations even though those annotations were not binding. The decisive inquiry concerned the author and the author's function, not merely the legal effect of each passage.⁶⁵

The Court expressly distinguished private parties and officials without lawmaking authority. Regulatory reliance does not itself make FASB a legislature, and mandatory funding does not make its staff federal employees. Congress expressly preserved a private entity.⁶⁶

Georgia's account of public access remains relevant despite that authorship limit. Georgia argued that copyright was needed to induce private publishers to prepare affordable annotated codes. The Court rejected that policy argument as a reason to depart from its interpretation of the Act.⁶⁷ It also explained why an opportunity to litigate fair use is not equivalent to a secure right of access: uncertainty and the prospect of penalties can discourage citizens, lawyers, and research companies from using legal works. The Court did not require proof of a publisher's bad motive to identify that

⁶³ U.S. Securities and Exchange Commission, *SEC Release No. 33-8221*, supra note 9; U.S. Securities and Exchange Commission, *SEC Release No. 33-9062A*, supra note 24, at 2–4; *Kisor*, 588 U.S. at 574–79.

⁶⁴ *Loper Bright Enterprises v. Raimondo*, 603 U.S. 369, 394–95 (2024); 15 U.S.C. § 77s(b).

⁶⁵ *Georgia v. Public.Resource.Org, Inc.*, 590 U.S. 255, 265–69, 274 (2020) (Roberts, C.J.; Thomas, J., dissenting; Ginsburg, J., dissenting).

⁶⁶ *Georgia*, 590 U.S. at 265, 270; 15 U.S.C. § 77s.

⁶⁷ *Georgia*, 590 U.S. at 272.

problem.⁶⁸ The ASC presents a different authorship question, but the same institutional question: should people need a publisher's permission, or the willingness to defend a lawsuit, to share the materials needed to understand their legal obligations?

The older cases explain why funding and access belong in this analysis. *Banks v. Manchester* connected judges' public salaries with their inability to claim a private interest in their judicial work. It also treated that work as an authoritative explanation of law that binds citizens and must be free for publication. Payment and notice were linked reasons for rejecting private control, not competing explanations.⁶⁹

The First Circuit carried those concerns into the private-standards setting in *Building Officials & Code Administrators v. Code Technology (BOCA)*. It questioned whether private authorship could justify exclusive control over a code adopted as regulations carrying sanctions. The public's need to know the rules did not disappear because a private organization drafted them. The court vacated a preliminary injunction and remanded; it did not finally hold every adopted standard uncopyrightable.⁷⁰

County of Suffolk later asked both whether copyright incentives were needed to create the work and whether access was needed to know the law. It rejected an automatic public-domain rule for the county's tax maps and allowed the county to develop its evidence. The maps assessed a pre-existing tax obligation rather than creating it, and access was available. That adverse result matters. The ASC differs where its standards supply the accounting requirements themselves, rather than merely recording facts to which an independently stated rule applies.⁷¹

The funding history in Section 2.2 bears on incentive dependence, not federal authorship. Its application to market harm belongs to Section 4.2.6.

The source of a copy does not necessarily change its public character. *Howell v. Miller* explained that a publisher could reproduce state statutes from another publisher's book, while the latter could protect its own notes and other original additions. This defeats the assumption that law becomes private merely by passing through a private edition. It does not decide whether the ASC has acquired the relevant legal status, or excuse a separate breach of contract or unlawful access to a computer system.⁷²

Sections 101 and 105 exclude from domestic copyright works prepared by federal officers or employees as part of their official duties. That rule applies to government-authored SEC text, not the privately maintained Codification as a whole. Surrounding private expression requires its own analysis.⁷³

The standards cases address the next question: how does legal adoption affect the right to publish a work that began as private expression?

⁶⁸ *Georgia*, 590 U.S. at 275.

⁶⁹ *Banks v. Manchester*, 128 U.S. 244, 253 (1888).

⁷⁰ *Building Officials & Code Administrators International, Inc. v. Code Technology, Inc.*, 628 F.2d 730, 734–36 (1st Cir. 1980).

⁷¹ *County of Suffolk v. First American Real Estate Solutions*, 261 F.3d 179, 193–95 (2d Cir. 2001).

⁷² *Howell v. Miller*, 91 F. 129, 137–38 (6th Cir. 1898) (Harlan, Circuit Justice, joined by Taft, Circuit Judge).

⁷³ Definitions, 17 U.S.C. § 101 (2024); Subject matter of copyright: United States Government works, 17 U.S.C. § 105 (2024).

4.1.2 Enacted model codes: *Veeck* and its continued force

In *Veeck*, the Fifth Circuit, sitting en banc, held that a publisher did not infringe by reproducing the building codes of two Texas municipalities. The model codes were privately authored, but the municipalities had adopted them as their law. The majority treated publication of that law differently from publication of the model codes as private works. Its reasoning defended public ownership and rejected dependence on the copyright holder's continuing willingness to allow access.⁷⁴

The decision also supplies a distinct statutory route. Under the **merger doctrine**, expression cannot be controlled by copyright when doing so would give control over an idea that can be expressed only that way. Section 102(b) excludes ideas, systems, and methods from copyright protection. *Veeck* applied that distinction to enacted codes: the precise text was the fact of what the municipalities' law required. A person cannot publish an authoritative copy of that law by inventing different wording. The court's reasoning therefore concerned both public ownership of law and the inability to separate the legal rule from its controlling expression.⁷⁵

For the ASC, the corresponding argument starts with the legal reporting duty. An independent textbook may explain GAAP in different words, but it cannot replace the authoritative wording against which conformity is assessed. If the duty adopts the integrated rulebook, exclusive control over reproducing that rulebook would control publication of the rule itself. This is the affirmative merger argument, not a claim that accounting prose admits only one possible formulation before adoption. Its disputed premise is the legal effect of the general conformity command. The distinction between an adopted framework and an external reference, considered below, determines whether *Veeck*'s reasoning extends to the ASC.

The limiting language is equally important. The court distinguished references to extrinsic works, including the materials at issue in *CCC* and *Practice Management*. It also warned against mixing enacted text with material not adopted into law and presenting the mixture as law. The decision therefore does not establish that a government reference to any copyrighted work removes protection from the entire work. Its model-code rationale depends on the relationship among the work's purpose, legal adoption, and what the defendant actually published.⁷⁶

The strongest application to accounting is not merely that FAF publishes useful professional literature. Congress and the SEC have identified FASB's standard-setting function within the legal reporting system. FASB's work is maintained to supply standards with that recognized role. That institutional relationship is closer to production for legal adoption than a law's incidental reference to a novel or textbook. Yet accounting standards also serve private contracts, voluntary reports, and professional practice. The comparison must explain these mixed functions, not deny them.

The Fifth Circuit's 2024 decision in *Canadian Standards Association v. P.S. Knight* makes that response stronger. The court applied *Veeck* to a commercial publisher's replicas of codes adopted by Canadian jurisdictions. Other uses of the codes did not prevent their treatment as model codes

⁷⁴ *Veeck v. Southern Building Code Congress International, Inc.*, 293 F.3d 791, 799–802 (5th Cir. 2002) (en banc; cert. denied, 539 U.S. 969 (2003)).

⁷⁵ *Id.* at 800–01.

⁷⁶ *Id.* at 803–05.

intended for adoption. The court applied United States law to infringement while distinguishing the ownership question governed by foreign law.⁷⁷ It did not reach fair use.⁷⁸

Thus neither commercial publication nor a standard's nonlegal uses defeats the Fifth Circuit's model-code rationale. Its application to the ASC turns on the adoption argument in Section 3 and faithful publication of that body as the legally operative framework.

4.1.3 *Fair use without extinguishing ownership*

The D.C. Circuit's standards decisions provide a different route. Its 2018 decision required close attention to the variations among referenced standards and their roles in identifying legal obligations. The 2023 appeal then affirmed fair use for the noncommercial publication of the incorporated standards at issue. The court distinguished a public repository of law from a publisher's presentation of current industry best practices. It did not need to declare that every underlying private copyright had ceased to exist.⁷⁹

That route fits the ASC problem in an important way. A court can recognize private authorship and still conclude that **republishing**, meaning publication of another copy, for legal understanding is permitted. Copyright ownership is not a promise of control over every use. The statutory fair-use inquiry asks whether the particular copying is justified, considering its purpose, the work, the amount, and the market. It therefore permits a differentiated answer for legally operative standards and material beyond them.

The D.C. Circuit's amount analysis is especially useful. When an agency gives legal effect to an entire standard, reproducing the entire standard can reasonably serve a comprehensive account of the law. Explanatory and background material can aid interpretation. A publisher need not strip away every sentence that lacks an imperative verb. At the same time, the court's treatment of unincorporated standards cautions against treating a useful archive as automatically coextensive with the adopted law.⁸⁰

In April 2026, the Third Circuit extended the fair-use reasoning to a for-profit publisher's display of standards incorporated through an intermediate building code. It affirmed denial of a preliminary injunction because UpCodes was likely to succeed on its defense. The court treated indirect incorporation as capable of producing the same legal-information purpose as direct incorporation. It also explained why whole-standard copying could include portions that impose no duty but help explain the standard.⁸¹

Two limits are essential. First, this was a preliminary-injunction appeal, not a final judgment resolving every disputed fact. Second, UpCodes displayed the versions adopted by particular jurisdictions, rather than the latest versions available from the standard setter. The court expressly reserved merely referenced material. The holding supplies precedential legal reasoning for the ASC argument, not a determination about every current standard.⁸²

⁷⁷ *Canadian Standards Ass'n v. P.S. Knight Co.*, 112 F.4th 298, 303–06 (5th Cir. 2024) (King, J.; Douglas, J., dissenting; substituting and withdrawing 108 F.4th 329 (July 16, 2024); reh'g and reh'g en banc denied Aug. 14, 2024; cert. denied, No. 24-537 (U.S. Jan. 21, 2025)).

⁷⁸ *Id.* at 307 n.9.

⁷⁹ *American Society for Testing & Materials v. Public.Resource.Org, Inc.*, 896 F.3d 437, 448–51 (D.C. Cir. 2018); *ASTM (D.C. Cir. 2023)*, 82 F.4th at 1265, 1268–72.

⁸⁰ *ASTM (D.C. Cir. 2023)*, 82 F.4th at 1269, 1273.

⁸¹ *ASTM v. UpCodes*, No. 24-2965, slip op. at 4, 14–26, 33–34.

⁸² *Id.* slip op. at 4–7, 24–25.

The model-code and fair-use cases address different questions and records, not a single split over public access. The ASC argument invokes both routes; fair use does not require extinguishing private ownership.

4.1.4 *The counterauthorities identify real boundaries*

CCC Information Services rejected both merger and public-domain arguments concerning a vehicle-valuation guide. The Second Circuit withheld merger because treating each valuation as an unprotected idea would let a competitor take virtually the entire original compilation. The valuations reflected editorial opinion, and the regulations permitted other valuation methods.⁸³ The ASC response rests on legal adoption, not labeling each sentence an unprotected idea. A general conformity duty makes the framework the measure of compliance, rather than an optional source of estimates. Merger turns on that role; Section 4.2 separately defends complete publication through fair use.

Practice Management presents a closer obstacle because federal rules required use of a private medical coding system. The Ninth Circuit nevertheless preserved copyright and found no demonstrated denial of access on its record. It separately found misuse in an exclusivity arrangement. The case rejects the claim that mandatory use alone ends copyright. It also shows why access, ownership, and misuse must be analyzed separately rather than used as interchangeable labels for an unfair arrangement.⁸⁴

The property objection deserves a separate answer. *CCC* warned that stripping copyright merely because government referred to a private work would raise serious questions under the **Takings Clause**, which requires just compensation when government takes private property for public use. Its assigned-schoolbook example tests the same boundary: a requirement to read a book does not ordinarily enact that book's contents as rules.⁸⁵

The ASC supplies the substance of a legal duty, not merely required reading. Moreover, fair use enforces copyright's existing limits rather than transferring an unlimited right to the public. Section 107 does not condition fair use on compensation. A takings objection cannot replace the inquiry into whether the publication is fair.⁸⁶

If federal action takes a compensable property right, the owner's takings claim would generally seek just compensation from the United States. It would not run against private people who access or republish the ASC merely because they rely on a public-use right. Whether their particular access or republication is lawful remains a separate copyright and contract question.

Compelling a broader license requires separate authority and analysis of existing rights. *Practice Management* identified fair use and possible mandatory licensing at a reasonable royalty as distinct responses to denied access. It neither ordered a license nor established a general agency power to impose one. Judicial defenses and funded delivery arrangements remain distinct options.⁸⁷

⁸³ *CCC Information Services, Inc. v. Maclean Hunter Market Reports, Inc.*, 44 F.3d 61, 72–74 (2d Cir. 1994) (Leval, J.).

⁸⁴ *Practice Management Information Corp. v. American Medical Ass'n*, 121 F.3d 516, 518–21 (9th Cir. 1997) (amended, 133 F.3d 1140 (9th Cir. 1998)).

⁸⁵ *CCC*, 44 F.3d at 74.

⁸⁶ 17 U.S.C. § 107.

⁸⁷ *Practice Management*, 121 F.3d at 519.

Original organization presents another possible right. *Feist* excludes facts from copyright while recognizing that original selection and arrangement can be protected. The fact that an accounting system is functional does not establish that every explanatory sentence or organizational choice is devoid of expression. *Baker v. Selden*, itself an accounting case, distinguishes a bookkeeping system from the book explaining it. The distinction supports freedom to use accounting methods but does not automatically authorize republication of every book that describes them.⁸⁸

American Dental Association v. Delta Dental Plans Association makes the objection especially direct. The Seventh Circuit rejected a rule denying copyright to useful taxonomies, meaning organized classifications of a field. It expressly identified FASB manuals among the works that the rejected rule would strip of protection. The court treated original classification and description as protectable and distinguished using a system from copying the work that describes it.⁸⁹

That accounting example defeats an argument based only on usefulness, technical subject matter, or committee authorship. But the court left other defenses for remand. Recognizing original expression does not answer whether the ASC's legal role justifies faithful public reproduction.

The distinction between the governing standard and a private explanation also answers the editorial-rights objection in *Ross*; Section 4.2.6 addresses that decision's originality and market reasoning together.

The May 2026 order in *Texas Association of School Boards v. Texans for Excellence in Education* makes the compilation issue concrete. TASB disclaimed ownership of underlying law while alleging original selection, coding, arrangement, and explanatory text. The court allowed the copyright claim to survive dismissal and declined to resolve fair use from the complaint alone. It expressly considered the Third Circuit's new *UpCodes* decision, distinguishing the procedural posture. This is an adverse analogy for copying separable editorial contributions, not a final determination that all the claimed material was protected.⁹⁰

The court denied a preliminary injunction for failure to establish irreparable harm, without resolving the other requirements. Its conditional observation about official adoption did not extinguish the rights at issue. Neither that denial nor survival of the complaint settled fair use on the merits.⁹¹

Section 4.2 addresses the distinct purpose and market objections in *Hachette* and *NFPA*. Protectable expression is the starting point for that analysis, not an answer to whether its public use is justified.

These authorities leave a substantial path for public ASC publication, but they define its burden. The publisher must identify the legally operative body, justify the copying in relation to public understanding, and address protected expression and market substitution. The integrated-rulebook argument answers the first question. It does not excuse the remaining ones.

⁸⁸ *Feist Publications, Inc. v. Rural Telephone Service Co.*, 499 U.S. 340, 348–49 (1991); *Baker v. Selden*, 101 U.S. 99, 104–05 (1879).

⁸⁹ *American Dental Association v. Delta Dental Plans Association*, 126 F.3d 977, 978–81 (7th Cir. 1997).

⁹⁰ *Texas Association of School Boards, Inc. v. Texans for Excellence in Education, Inc.*, No. 1:25-cv-01863-DH, ECF No. 44, at 5–18 (W.D. Tex. May 13, 2026) (Howell, M.J.; preliminary injunction denied; motion to dismiss granted in part and denied in part).

⁹¹ *Id.* ECF No. 44, at 20–25.

4.2 Fair Use and the Case for a Complete Edition

4.2.1 A use-specific inquiry

Section 107 identifies teaching, scholarship, criticism, and research among fair-use purposes. Courts assess purpose and character, the work's nature, the amount used, and market effect together. An educational label alone does not establish the defense.⁹²

The use defended here is faithful publication of the integrated framework for public legal understanding, not distribution of publisher software or training a commercial model. Legal effect informs all four factors; it does not displace the inquiry into scope, purpose, or market substitution.

4.2.2 Purpose: explaining obligations rather than supplying a substitute

The first factor asks what the defendant does with the work. *Warhol* requires an objective inquiry into the particular use, including the degree of difference from the original's purpose and the justification for copying. A new message or presentation cannot alone defeat the owner's rights in derivative uses. A publisher cannot make complete redistribution transformative merely by adding a better interface or describing the project as educational.⁹³

The standards cases identify a more specific justification. A work first published to state industry standards can be republished to identify rules that government has made legally consequential. The public audience includes not only practitioners seeking advice but people evaluating enforcement, reporting failures, proposed reforms, and the operation of public institutions. Faithful reproduction can serve that purpose even when the words remain unchanged. In that setting, alteration could frustrate rather than advance the use, because a reader needs to know what the governing text says.⁹⁴

The ASC presents a genuine difficulty within this reasoning. Unlike an old technical standard superseded as best practice but retained in a building code, the current Codification often serves professional accounting and legally required reporting at the same time. A public edition may serve some of the same research and educational purposes as the official publication. The difference between law and best practice is therefore not as sharp as it was for some standards in the appellate records. That is the strongest purpose objection, and free access alone does not answer it.

The answer is not to withhold the current rules until they become obsolete. A requirement to follow current GAAP gives publication of current rules a public-law purpose. The same fact that increases potential market overlap also increases the need for public access: these are the standards against which today's required reports are judged. A publication limited to closed reporting periods would preserve useful history while leaving the present legal obligation dependent on private permission. That is an incomplete remedy for the problem this Article addresses. The proper inquiry is whether faithful publication of the currently operative rulebook is justified, despite the overlap, by its role in communicating public duties.⁹⁵

That justification is testable. Source citations, effective dates, identified legal dependencies, and separation of generated aids show how a repository communicates the rulebook as law. Readers can retain and examine it without one provider's continuing permission. A product marketed only as a

⁹² 17 U.S.C. § 107; *Campbell v. Acuff-Rose Music, Inc.*, 510 U.S. 569, 577–79 (1994).

⁹³ *Andy Warhol Foundation for the Visual Arts, Inc. v. Goldsmith*, 598 U.S. 508, 525–32, 542–47 (2023) (Sotomayor, J.; Gorsuch, J., concurring; Kagan, J., dissenting).

⁹⁴ *ASTM (D.C. Cir. 2023)*, 82 F.4th at 1268; *ASTM v. UpCodes*, No. 24-2965, slip op. at 14–22.

⁹⁵ *Warhol*, 598 U.S. at 547.

cheaper replacement for FAF's Codification service presents a different case. These are differences in function and evidence, not a disclaimer that makes copying fair.

Noncommercial educational use strengthens the first scenario but does not decide it. *Hachette* held the library's use noncommercial but still weighed the first factor against it because the use was not transformative. Conversely, the Third Circuit did not treat a for-profit platform as disqualified where the challenged standards remained free and paid services supplied other functions. Purpose and commerciality must therefore be considered together without making either organizational form conclusive.⁹⁶

Authors Guild justified full-text indexing with limited display, not unrestricted publication of scanned books. The standards cases, rather than search functionality alone, supply the rationale for displaying the complete legal framework.⁹⁷

4.2.3 Why linking is not a complete answer

NFPA v. UpCodes presents the strongest contrary application. The district court found that UpCodes copied material beyond the adopted rules, used free standards to attract paying customers, and had not established fair use on summary judgment. Its answer to the access claim was direct:

UpCodes could have simply linked its users to NFPA's Free Access.

The court nevertheless left factual disputes on fair use; its order was not a final trial decision on that defense.⁹⁸

FAF can make the same argument on stronger access facts. Its enhanced free service offers search, printing, and copying, as Section 2.4 describes. The D.C. Circuit's record instead involved deficient reading rooms, almost all opened after Public Resource began publishing.⁹⁹ Those differences matter, but neither an earlier launch nor better viewing features secures independent preservation and sharing. A link does not preserve the text a teacher assigns or a practitioner relies on, permit sharing that text with a client, or secure independent access if the host changes its service or terms. FAF's homepage-only linking permission also does not allow a direct link to the particular rule under discussion. The public needs usable copies of the current framework, not merely a route to a publisher-controlled reading session.¹⁰⁰

The Third Circuit later explained that possible free access does not erase the benefits of enhanced access to law. Its record concerned an opaque request process, not FAF's existing free service, so the facts cannot be equated. The relevant comparison is what users can actually preserve, share, search, and study, including offline and through assistive tools.¹⁰¹

Nor does this answer excuse the overbreadth identified in *NFPA*. The ASC defense depends on the general conformity duty selecting the complete current substantive ASC, with its own scope

⁹⁶ *Hachette Book Group, Inc. v. Internet Archive*, No. 23-1260, slip op. at 35–39 (2d Cir. September 4, 2024); *ASTM v. UpCodes*, No. 24-2965, slip op. at 18–22.

⁹⁷ *Authors Guild v. Google, Inc.*, 804 F.3d 202, 215–18 (2d Cir. 2015) (Leval, J.).

⁹⁸ *National Fire Protection Ass'n, Inc. v. UpCodes, Inc.*, 753 F. Supp. 3d 933, ECF No. 232, at 32–35, 42 (C.D. Cal. 2024) (Garnett, J.; settled and dismissed Mar. 21, 2025).

⁹⁹ Financial Accounting Foundation, *FAF, Free Access Press Release*, supra note 6; *ASTM (D.C. Cir. 2023)*, 82 F.4th at 1270.

¹⁰⁰ Financial Accounting Foundation, *FAF, Free Access Press Release*, supra note 6; Financial Accounting Foundation, *FAF License Agreement (10.10.24)*, supra note 4, §§ 2, 3(c)(i).

¹⁰¹ *ASTM v. UpCodes*, No. 24-2965, slip op. at 31 n.13.

and transition rules. It does not permit a publisher to label excluded or superseded requirements as presently binding. Faithful complete publication preserves those limits; it does not apply every paragraph to every entity. That is the response to *NFPA*'s scope objection, not a proposal to abandon the current ASC in favor of historical fragments.

4.2.4 *Nature: functional standards with potentially protected expression*

The Codification is published, technical, and directed toward consistent accounting treatment. The standards cases give substantial weight to that functional character and legal role. The language may contain protected expression, but its function strengthens the justification for copying.¹⁰²

FAF's strongest response concerns the work needed to express and organize the standards. Choosing examples, coordinating defined terms, resolving inconsistencies, and arranging the material can involve judgment and original expression. *Feist* permits protection for original selection and arrangement even when the underlying facts are free for all to use. The Article need not deny those choices to explain why legal access can justify copying the resulting framework.¹⁰³

The value of that organization also explains why isolated sentences do not suffice: a definition's relationship to an exception can determine an outcome. Fair use permits analysis of that need even where the expression is protected. Decorative features and independent essays require a separate justification, as the content categories in Section 3.3 explain.

4.2.5 *Amount: complete standards and the integrated rulebook*

The statutory comparison is with the copyrighted work as a whole. For the compilation claim, the relevant work is the substantive Codification, not all content on FAF's website. For separately protected standards or included works, their own boundaries also matter. The publication defense does not depend on enlarging the denominator to make the copying look small. Assume in FAF's favor that the proposed edition reproduces the whole of each substantive standard it includes. The question is whether that complete copying is reasonable for publication of the adopted rulebook. The standards cases permit that conclusion; they do not require a public-law publisher to leave its repository incomplete merely to reduce the proportion copied.¹⁰⁴ Appendix A reports the frozen collection's composition; Section 3.3 separates the substantive Codification from other material. Those counts describe the collection, not a fraction used to disguise complete copying as a small excerpt.

The public repository serves readers with different transactions, reporting dates, and reasons for examining compliance. It must let them determine which rules apply, not require them to know the answer before consulting the text. Its justified scope therefore exceeds a handout answering one student's question.

The D.C. Circuit's whole-standard reasoning supports that conclusion. It measures the copying against the legal-information purpose and recognizes that explanatory material can aid interpretation. The Third Circuit likewise rejects a rule that would strip nonmandatory material from a standard adopted as a whole. Its reservation for merely referenced works directs attention to the scope of

¹⁰² *ASTM* (D.C. Cir. 2023), 82 F.4th at 1268; *ASTM v. UpCodes*, No. 24-2965, slip op. at 22–23.

¹⁰³ *Feist*, 499 U.S. at 348–49.

¹⁰⁴ 17 U.S.C. § 107(3); *ASTM* (D.C. Cir. 2023), 82 F.4th at 1269.

adoption; it does not impose a general requirement that government quote each sentence before a publisher may reproduce it.¹⁰⁵

The D.C. Circuit described the repository's scope as "no more and no less" than the incorporated standards.¹⁰⁶ The Third Circuit's footnote 9 supplies the limiting rule:

The scope of the reference controls the extent of incorporation into the IBC, and thus the extent of incorporation into a building code that adopts the IBC.¹⁰⁷

Applied here, the limiting principle is substantive authority under the conformity duty: rules that determine whether financial statements conform belong to the adopted framework; independent texts that merely explain, criticize, or sell services around that framework do not enter it by proximity. This does not silently import IFRS, government accounting standards, or every textbook that mentions GAAP. Nor does it infer adoption from FASB's choice to package material together. The general reporting command supplies the scope; the authoritative rulebook supplies its accounting content.

FAF can still argue that a complete public edition reaches far beyond what any individual reader needs. But irrelevance to one institution does not remove a rule from the framework others must use. The justification must fit publication of that framework, not the smallest imaginable use of it.

The edition must preserve content and time boundaries. Pending amendments need labels and transition rules; historical text identifies earlier duties. Linked proposals and independent explanations require their own copying justification. Retrieving material from the same website does not give it the same legal status. These distinctions preserve accurate public access to the complete current framework, not a collection of supposedly independent enacted fragments.

If a court construes a particular mandate narrowly, publication of the specific standard and necessary context remains a fallback. It does not replace this Article's defense of the integrated rulebook.

4.2.6 Licensing revenue does not establish a right to exclude

The fourth factor does not give a publisher a veto over public access merely because it collects licensing fees. It requires analysis of the market for the work, the challenged use, and the public benefits of copying. FAF's free enhanced service removed a reader subscription price, not its licensing business. The question is whether losses from faithful publication of the current legal rulebook justify exclusion, after accounting for the purpose and character of that publication. The analysis must distinguish a protected service market from a demand for permission to exercise a public right.¹⁰⁸

The Third Circuit's 2026 decision is explicit on this point. Free copies can be effective substitutes, and that substitution is a kind of loss the market factor recognizes. The court nevertheless found the fourth factor equivocal on its record, considering uncertainties about the relevant market and the public benefits of enhanced legal access. The D.C. Circuit also treated the factor as equivocal

¹⁰⁵ *ASTM* (D.C. Cir. 2023), 82 F.4th at 1269; *ASTM v. UpCodes*, No. 24-2965, slip op. at 24–26.

¹⁰⁶ *ASTM* (D.C. Cir. 2023), 82 F.4th at 1269.

¹⁰⁷ *ASTM v. UpCodes*, No. 24-2965, slip op. at 24–25 n.9.

¹⁰⁸ Financial Accounting Foundation, *FAF, Free Access Press Release*, supra note 6; Financial Accounting Foundation, *FAF Audited Financial Statements (2025)*, supra note 22.

rather than declaring that a public-serving publisher cannot cause harm. Neither holding supports a blanket assertion that a free ASC edition competes with nothing.¹⁰⁹

The historical-version distinction explains part of those results. The D.C. Circuit observed that all the standards before it had been updated, while regulators lagged in updating legal incorporations. The Third Circuit likewise identified a possible unusual market in which legally incorporated copies were substitutes for older works without displacing demand for the newer standards. Those facts cannot be assumed for current GAAP.¹¹⁰

The distinction follows from the different legal commands. As Section 3.2 establishes, a current conformity duty follows the operative framework, while formal incorporation can preserve a fixed edition. That temporal difference changes the market comparison; it does not diminish the public-information purpose.

That difference strengthens both sides of the market inquiry. Publication of the complete current substantive Codification may replace uses for which FAF now receives fees. It also supplies the rules needed to assess present compliance. Limiting public publication to superseded text would reduce competition by withholding the very material that serves the legal-information purpose. It would leave students learning outdated requirements and advisers dependent on private permission to preserve the basis of current advice. Historical access remains necessary, but it is not an answer to this problem.

The fourth factor can account for those public benefits without denying substitution. In *Google v. Oracle*, the Supreme Court examined the source of likely revenue losses and the benefits copying could produce, rather than treating a dollar loss as decisive. Its software-specific analysis does not settle the ASC question. The D.C. Circuit's standards decision supplies the closer connection: it weighed the benefits of access to law even assuming reduced demand. Together, the decisions support asking what the public would lose through exclusion, as well as what the publisher could lose through copying. Here that public loss includes reliable study, professional explanation, and scrutiny of today's legally required accounting treatments.¹¹¹

The funding structure changes the incentive question as well. Three questions must be separated: what supports continued standard setting, what reliable publication costs, and which losses affect a legally protected market. Congress's compulsory funding mechanism matters to the first; it does not automatically answer the other two. FAF allocations and reserve use also prevent treating FASB's separate accounts as proof of financial isolation. An incentive account must distinguish supported production from services dependent on licensing, rather than assume that every lost receipt threatens the creation of standards.¹¹²

The history in Section 2.2 gives this distinction institutional weight: the funding scheme responds to dependence on interested contributors and purchasers. The assessment functions economically as a tax on a broad issuer base, with its burden distributed beyond the remitting companies. The professional-services licensing channel in Section 2.4 adds a separate cost of using that funded output. The resulting public contribution strengthens the access argument without treating every licensed service as unnecessary or every lost receipt as a threat to standard setting.

¹⁰⁹ *ASTM v. UpCodes*, No. 24-2965, slip op. at 27–33; *ASTM (D.C. Cir. 2023)*, 82 F.4th at 1271–72.

¹¹⁰ *ASTM (D.C. Cir. 2023)*, 82 F.4th at 1271–72; *ASTM v. UpCodes*, No. 24-2965, slip op. at 29–31.

¹¹¹ *Google LLC v. Oracle America, Inc.*, 593 U.S. 1, 35–36 (2021); *ASTM (D.C. Cir. 2023)*, 82 F.4th at 1271–72.

¹¹² 15 U.S.C. §§ 7219(c)(1), (e), (j); Financial Accounting Standards Board, *FASB Audited Financial Statements* (2025), *supra* note 6, at 5, 7–8.

As the licensing accounts in Section 2.4 show, a downloadable edition could displace redistribution fees or parts of a licensed research service. But payment proves a transaction, not a right to prohibit every licensed use. Buyers may pay for certainty, convenience, authentication, updates, or freedom from litigation. Receipts do not separate those benefits from the asserted right to exclude public-law publication.¹¹³

Ross makes the contrary market argument concrete. The district court rejected fair use for copying Westlaw **headnotes**, short summaries of legal points in opinions, to develop a competing legal search tool. It credited both the research-service market and a potential training-data market, and placed the burden of proving fair use on Ross. It rejected the public-access justification because the opinions themselves were freely available; the public had no corresponding right to Westlaw's editorial analysis. A public ASC publisher must likewise substantiate its defense, not demand that FAF disprove every possible public benefit.¹¹⁴

But the subject of the copying changes the answer. Westlaw's headnotes explain law that exists independently of them. The ASC supplies the accounting requirements selected by the legal command. Free official viewing does not turn those requirements into optional commentary, nor does a training-data market decide the distinct use of publishing the governing rulebook. Ross requires a supported justification for copying; the ASC's operative role supplies that justification here. The standards cases then explain why faithful public publication can outweigh an owner's interest in controlling copies. This is an argument from the use and legal role of the text, not an assumption that a free edition cannot compete with paid services.¹¹⁵

The incentive reasoning of *Georgia*, examined in Section 4.1, reinforces the order of analysis: licensing receipts cannot define the legal scope of exclusivity by themselves.

The public-access response has two parts. First, a claimed licensing market cannot be defined solely as the market for permission to perform the use that fair use protects. Otherwise the fourth factor would answer itself whenever an owner offered a license. Second, the standards cases recognize public benefits from reliable access to law when assessing the source and significance of asserted losses. Those benefits include informed compliance, criticism of enforcement, and debate about the rules themselves. They extend beyond a purchaser's savings.¹¹⁶

The market objection does not defeat the complete-current-ASC thesis. The public needs the rules governing present reporting, not merely a cheaper private book. Courts must consider proven substitution and legitimate service markets. They must also weigh access to binding rules, without presuming that every foregone permission fee justifies withholding those rules.

4.2.7 *The factors support complete public publication*

The factors together support faithful publication of the complete current substantive Codification for public legal understanding. The public-information purpose, functional content, and justified completeness must be weighed against actual substitution. The current legal role of the copied text and the benefits of access support publication despite that competition. This is a claim to use the governing rulebook, not a general permission to copy unrelated website material or train a

¹¹³ Financial Accounting Foundation, *FAF Audited Financial Statements* (2025), *supra* note 22.

¹¹⁴ *Thomson Reuters Enterprise Centre GmbH v. ROSS Intelligence Inc.*, No. 1:20-cv-613-SB, slip op. at 15–19, 22–23 (D. Del. February 11, 2025) (Bibas, J., sitting by designation).

¹¹⁵ *ROSS*, No. 1:20-cv-613-SB, slip op. at 22–23; *ASTM (D.C. Cir. 2023)*, 82 F.4th at 1271–72.

¹¹⁶ *Campbell*, 510 U.S. at 590–92; *Google*, 593 U.S. at 35–36; *ASTM (D.C. Cir. 2023)*, 82 F.4th at 1271–72.

commercial model. The content boundary is defined in Section 3.3; acquisition and contractual obligations are addressed in Section 5.

5. PRIVATE RESTRICTIONS ON PUBLIC USE

A right to reproduce standards under copyright law does not settle what a reader has promised when obtaining them. Access terms can therefore affect the same classroom, advisory, and publishing activities through a separate route. This section first examines what FAF's terms restrict, then whether contract law can enforce those restrictions. It distinguishes promises about copying from obligations concerning payment, confidentiality, and access to computer systems.

5.1 The License and Its Qualifications

The distribution history in Section 2.4 establishes the distinction between free viewing and public reuse. This section reads the operative restrictions and their qualifications together, before Section 5.2 addresses enforcement.

5.1.1 *The grant, restrictions, and savings language*

Section 2 grants personal access while withholding rights to copy, redistribute, or transfer the system from FAF's hosted environment. It restricts electronic storage and repurposing in physical, electronic, or machine-readable form. Its breadth matters because ordinary preservation and independent publication require some copying. The text does not become narrow merely because access is free. Nor does its asserted reach establish that a court will enforce it.¹¹⁷

Read literally, these restrictions reach a saved screenshot or an excerpt pasted into study notes or a client memorandum. The agreement does not name those everyday acts; they fall within its broader description of copying any portion into storage outside the hosted environment. An accountant needs to preserve the basis of advice, a colleague needs to check it, and a teacher needs to put the controlling passage beside an explanation. Putting those uses in doubt burdens the work through which accounting obligations are understood and applied. Whether a particular act remains permitted depends on the qualifications and legal limits discussed below; the breadth of the asserted restriction is visible in the text itself.¹¹⁸

Section 3(a) addresses copying, modification, distribution, network availability, commercial purposes, and use beyond a limited individual session. It also addresses automated systems and equivalent manual processes. But that subsection begins with an express qualification:

Except as expressly permitted by this Agreement or applicable law¹¹⁹

The subsection's sentence structure matters. The qualification introduces the enumerated prohibitions, ending with item (k). The anti-automation promise begins in a second sentence. FAF can therefore argue that the introductory exception qualifies the list but not that separate promise. Section 2's storage restriction also lacks the introductory exception. The strongest public-access reading treats the qualification and section 10(a)'s legality language as evidence that the agreement

¹¹⁷ Financial Accounting Foundation, *FAF License Agreement (10.10.24)*, *supra* note 4, § 2.

¹¹⁸ *Id.* § 2.

¹¹⁹ *Id.* § 3(a).

preserves lawful uses throughout. The narrower reading gives each sentence its own scope. Neither construction should be presented as a court's interpretation of this unlitigated instrument.¹²⁰

The qualification supplies a direct argument for public use: copying that copyright law permits falls outside the listed prohibition. FAF could answer that the word “expressly” also modifies permission supplied by applicable law, demanding something more specific than a disputed fair-use claim. But section 107 expressly protects fair use; applying its standard to new facts does not make the resulting permission less legal. A court need not invalidate a promise that, properly read, does not prohibit the use. Separate promises still require separate analysis, including section 3(b)'s machine-use restrictions.¹²¹

Section 10(a) reinforces this reading by stating an intention to comply with law and providing for severance of invalid terms. It also incorporates further website restrictions and seeks replacement terms preserving the invalid provision's economic purpose. It is therefore evidence for a lawful construction, not an independent grant of every copyright-permitted use.¹²²

If genuine ambiguity remains, the reader can invoke **contra proferentem**, the rule that resolves ambiguity against the contract's drafter. New York treats this as a last resort, after other interpretive evidence fails to resolve the meaning.¹²³ Applied here, the argument asks that FAF bear the consequences of its unclear allocation of lawful uses. It does not allow a court to ignore clear words or assume that the section 3(a) exception governs every sentence.

There is also a relevant difference between the board's public-access policy and its parent's license. The FASB Rules of Procedure permit a limited number of copies for internal or personal use, while withholding permission for resale or external distribution. The preserved 2025 version also continues to describe the earlier paid Professional View. These inconsistencies make the dated documents worth comparing. They do not justify selecting the most generous sentence as if it unambiguously overrides every other term. They do defeat the suggestion that the record contains one perfectly uniform prohibition on all copying.¹²⁴

5.1.2 Automation, links, termination, and third-party interests

Section 3(b) reaches uses connected with artificial intelligence, including training, development, and fine-tuning, and separately restricts automated extraction. Its reference to use in connection with such technology is broader than a prohibition on training a competing model. A search index, an accessible reading tool, a retrieval system, and model training can involve different acts, outputs, and markets. The agreement's grouping of these activities does not make their copyright treatment identical.¹²⁵

The linking restriction reaches something more basic than copying: directing a reader to the relevant rule on FAF's own service. Section 3(c)(i)(a)(iii) prohibits users from linking beyond a designated homepage:

¹²⁰ Financial Accounting Foundation, *FAF License Agreement (10.10.24)*, supra note 4, §§ 2, 3(a), 10(a).

¹²¹ Financial Accounting Foundation, *FAF License Agreement (10.10.24)*, supra note 4, §§ 2–3; 17 U.S.C. § 107.

¹²² Financial Accounting Foundation, *FAF License Agreement (10.10.24)*, supra note 4, § 10(a).

¹²³ *Fernandez v. Price*, 63 A.D.3d 672, 675–76 (N.Y. App. Div. 2009).

¹²⁴ Financial Accounting Standards Board, *Rules of Procedure, Amended and Restated through February 2025*, Financial Accounting Standards Board, February 2025, URL: <https://storage.fasb.org/Rules%20of%20Procedure-Feb%202025.pdf> (visited on 09/11/2026).

¹²⁵ Financial Accounting Foundation, *FAF License Agreement (10.10.24)*, supra note 4, § 3(b).

link to any part of the FAF, FASB, or GASB websites other than a FAF Homepage¹²⁶

The agreement invites permission requests for links beyond a homepage. Its separate restriction on displaying the sites through another website also expressly names deep linking. The homepage-only restriction does not depend on copying text, embedding a page, or falsely claiming endorsement.¹²⁷

A teacher linking to an assigned topic or an accountant linking to the basis of advice directs readers to the official source. Sending those readers to the homepage instead makes them repeat the search and identify the relevant provision for themselves. The restriction therefore burdens source checking even when the user neither republishes the standard nor replaces FAF's service. A rule can be free to view yet needlessly difficult to teach, discuss, and verify.

An accurate source link serves a different interest from passing off an independent publisher as FASB. The agreement addresses both under one heading; the public-access argument should distinguish them and preserve attribution and nonendorsement. These are claims about the restriction's text and practical implications, not findings that FAF has enforced it against teachers or accountants. Section 5.2 connects the reputation condition and source-link restrictions to copyright misuse and its limits.

Section 6(a) states two alternatives for beginning the agreement:

This Agreement will take effect, and Your non-exclusive license will begin immediately upon the first to occur of You accessing any portion of the Codification or GARS, or by clicking the "I ACCEPT" button below

It also declares:

Your access to the Codification and GARS, and the availability of these terms on our site shall be an acceptable form of written notice for purposes of this Section, as further evidenced by any active acceptance by You of the Site Terms.¹²⁸

An affirmative click after conspicuous notice supplies stronger evidence of agreement than access alone. Section 5.2 addresses that distinction; neither form of claimed assent settles whether a particular restriction is enforceable.

Termination and availability provisions concern durability. The agreement reserves termination without notice and disclaims uninterrupted access. Routine maintenance is not itself an access-to-law violation; every publisher needs to maintain its systems. But dependence on one revocable service is not equivalent to possession of a reliably dated legal source. Public repositories can reduce that dependence through preserved copies and clear version records. Whether particular copies are permitted remains the legal question.¹²⁹

The agreement also reserves rights of third-party licensors and identifies them as beneficiaries. That language matters to ownership and to who could assert a contractual claim. The public-access argument cannot assume FAF owns every included work, or that a claim would necessarily be brought only by FAF. Nor can a private reservation convert government-authored text into privately owned expression. The correct approach is to identify the particular material, its author where known, and the particular right asserted.¹³⁰

¹²⁶ Financial Accounting Foundation, *FAF License Agreement* (10.10.24), *supra* note 4, § 3(c)(i)(a)(iii).

¹²⁷ *Id.* § 3(c)(i).

¹²⁸ *Id.* § 6(a).

¹²⁹ *Id.* §§ 4, 6.

¹³⁰ *Id.* § 7.

Finally, section 10 selects New York law and contains forum and modification provisions. The forum language is asymmetric: it restricts suits brought by the user while reserving broader litigation choices to FAF. The provision asserting that posted modifications bind users does not by itself establish valid notice or assent to every later version. Those issues depend on the governing law and facts of the relationship. They must be tested under the formation cases, not inferred from the drafter's declaration.¹³¹

The terms place ordinary preservation and source-linked explanation within claims of private control. Their applicable-law language supplies an argument for permitted use; Section 5.2 addresses the restrictions that remain after interpretation.

5.2 Contract Enforcement and Public Use

5.2.1 Interpretation and formation come first

A person may have a copyright defense yet have promised not to make the disputed use. The contract inquiry asks who agreed, what they promised, and whether the promise is enforceable. The applicable-law qualification examined in Section 5.1 may already exclude the copying from the restriction. An account holder, an institution acting through an employee, and a downstream recipient may owe different duties; receiving a copy does not itself establish a contract with FAF.

New York's Court of Appeals held in *Wu v. Uber* that the user's affirmative acceptance formed a contract. The screen conspicuously linked the terms and explained the checkbox and confirmation button. The user did not need to read the linked terms to agree to them. For an ASC user who encounters comparable notice and clicks an acceptance button, formation is a strong argument for FAF, not a likely escape from the agreement. The public-access defense must therefore confront the enforcement of an accepted restriction.¹³²

Specht concerns downloading without reasonably conspicuous notice. It bears on section 6(a)'s claim that access begins the agreement, not on the effectiveness of an express acceptance button. Declaring every visitor bound cannot supply missing notice.¹³³

Register.com treats repeated access with notice differently from an uninformed first visit. Calling terms **browsewrap**, meaning terms that claim acceptance through browsing rather than an agreement button, does not resolve what the user knew or did. Dated screens, the agreement, and the user's conduct are the relevant evidence.¹³⁴

Free viewing does not establish lack of consideration: service access can form part of an exchange without payment. Nor does broad modification or termination language alone establish invalidity. Enforcement of an amendment depends on its terms and the evidence of notice and assent.

In its amended October 2025 *Santos v. Kimmel* opinion, the Second Circuit affirmed fair use but declined to decide preemption of the state claims. It instead identified defects in party or beneficiary

¹³¹ Financial Accounting Foundation, *FAF License Agreement (10.10.24)*, supra note 4, § 10(b)–(c).

¹³² *Wu v. Uber Technologies, Inc.*, 43 N.Y.3d 288, 303–07 (N.Y. 2024).

¹³³ *Specht v. Netscape Communications Corp.*, 306 F.3d 17, 35 (2d Cir. 2002); Financial Accounting Foundation, *FAF License Agreement (10.10.24)*, supra note 4, § 6(a).

¹³⁴ *Register.com, Inc. v. Verio, Inc.*, 356 F.3d 393, 401 (2d Cir. 2004).

status, the alleged implied agreement, and damages. The decision turns on those defects, not a rule that fair use defeats every contract.¹³⁵

FAF expressly identifies third-party licensors as beneficiaries, so the *Santos* defect cannot be assumed here. A recipient who never agreed differs from one who obtains a copy through a mirror after accepting a restriction. The last delivery source does not erase that contractual history.¹³⁶

5.2.2 Preemption depends on the right asserted

The agreement chooses New York law and requires suits brought by the user to proceed in New York, making Second Circuit authority central. FAF reserves the right to sue elsewhere; the clause does not guarantee the same forum for every dispute.¹³⁷

Section 301 addresses equivalent state-law rights in works within copyright's subject matter. An additional obligation, such as a promise to pay, can change the nature of the right asserted. Conflict preemption separately asks whether enforcement interferes with the federal scheme. Neither question is the same as formation or federal jurisdiction.¹³⁸

Both requirements matter for the ASC. First, its fixed text and compilation fall within copyright's subject matter even if particular rules, facts, or government text receive no protection. As *Forest Park* explains, the subject-matter inquiry reaches beyond the material that copyright actually protects. Otherwise state law could restore the exclusive rights that federal law withholds. Second, a court must identify whether the asserted promise protects a different right. Establishing that accounting rules are unprotected therefore does not defeat a preemption defense; it makes the second inquiry especially important.¹³⁹

The strongest contract-friendly position begins with *ProCD*. A contract ordinarily binds its parties rather than the world; a person who has not undertaken the bargain is differently situated. The court nevertheless declined to place everything labeled a contract outside preemption.¹⁴⁰ *Bowers*, applying First Circuit law, enforced a contractual restriction on reverse engineering despite a preemption challenge. Its majority treated the contractual undertaking as legally significant. These decisions cannot be answered by saying that the agreement prohibits an act also mentioned in copyright law.¹⁴¹

The opposing position asks whether the promise protects a genuinely distinct interest or merely recreates exclusive control over copying. An added element that changes only the reach of the claim need not change its nature. Payment, confidentiality, or a relationship-specific undertaking can differ from a general prohibition on reproducing public material. *Briarpatch* held that enrichment did not change the nature of a claim based on unauthorized use. By contrast, *Forest Park* preserved a claim for breach of an implied promise to pay for a submitted television concept.¹⁴² The court stated:

¹³⁵ *Santos v. Kimmel*, No. 24-2196, slip op. at 8–10 (2d Cir. October 6, 2025) (Opinion issued September 15, 2025, amended October 6, 2025; pins to amended slip opinion).

¹³⁶ Financial Accounting Foundation, *FAF License Agreement* (10.10.24), *supra* note 4, § 7(b).

¹³⁷ *Id.* § 10(b).

¹³⁸ 17 U.S.C. § 301.

¹³⁹ *Forest Park Pictures v. Universal Television Network, Inc.*, 683 F.3d 424, 429–31 (2d Cir. 2012).

¹⁴⁰ *ProCD, Inc. v. Zeidenberg*, 86 F.3d 1447, 1454–55 (7th Cir. 1996).

¹⁴¹ *Bowers v. Baystate Technologies, Inc.*, 320 F.3d 1317, 1324–26 (Fed. Cir. 2003) (Dyk, J., concurring in part and dissenting in part).

¹⁴² *Briarpatch Ltd., L.P. v. Phoenix Pictures, Inc.*, 373 F.3d 296, 306–07 (2d Cir. 2004); *Forest Park*, 683 F.3d at 431–33.

Forest Park adequately alleged the breach of a contract that included an implied promise to pay. Because this claim is based on rights that are not the equivalent of those protected by the Copyright Act, it is not preempted.¹⁴³

It expressly left open whether every contract claim would avoid preemption.¹⁴⁴ FAF's free-access copying restriction is not a claim for an unpaid service fee. Recognizing that distinction preserves genuine payment bargains without assuming that every reader can be bound to surrender lawful publication.

The Fifth Circuit's *Vault* supplies a separate limit. Louisiana had authorized software-license restrictions that conflicted with computer-program owners' rights under section 117. The court held the conflicting statutory provision preempted and the corresponding restriction on decompilation or disassembly unenforceable. The holding concerned that statute and those software rights, not every private waiver of fair use. Its relevance here is structural: state-backed enforcement of a license remains subject to federal limits. Printing a restriction in an agreement does not answer the conflict.¹⁴⁵

ML Genius supports preemption on the copying side of that line, but its nonprecedential summary order is persuasive rather than binding authority.¹⁴⁶

Judge Dyk's partial dissent in *Bowers* states a powerful policy objection: mass-form terms could allow a publisher to eliminate rights that Congress left open to the public. The distinction between a negotiated exchange and a general condition on access is especially important where users need the material to understand public obligations. But this remains a dissenting position in that case. It cannot be substituted for the majority's holding. The Article advances the concern as part of its argument for careful claim-specific scrutiny, not as settled national doctrine.¹⁴⁷

The May 2024 decision in *X Corp. v. Bright Data* gives that concern a modern application. The court rejected state claims seeking control over copying and selling publicly available user content under conflict preemption. Its reasoning examined the interest asserted and the attempt to use terms as a broad private copyright system. X's status in relation to user-owned content was material. FAF could distinguish its ownership of original expression, although ownership does not make every restriction enforceable.¹⁴⁸

The later order in the same case prevents a categorical reading. In November 2024, the court rejected efforts to revive copying-based claims while allowing amended access-based theories to proceed. It also granted leave to add claims under section 1201(a), the Computer Fraud and Abuse Act, and California's computer-access statute. Bright Data did not oppose adding those claims for that motion; the court left later challenges open. This was permission to litigate the claims, not a finding that Bright Data had bypassed a protected access measure or accessed a system without authorization. The point is not that any clause labeled access survives. The point is that a claim

¹⁴³ *Forest Park*, 683 F.3d at 428.

¹⁴⁴ *Id.* at 432.

¹⁴⁵ *Vault Corp. v. Quaid Software Ltd.*, 847 F.2d 255, 269–70 (5th Cir. 1988).

¹⁴⁶ *ML Genius Holdings LLC v. Google LLC*, No. 20-3113, 2022 WL 710744, slip op. at 7–9 (2d Cir. March 10, 2022) (summary order).

¹⁴⁷ *Bowers*, 320 F.3d at 1335–37.

¹⁴⁸ *X Corp. v. Bright Data Ltd.*, 733 F. Supp. 3d 832, ECF No. 83, at 22–24 (N.D. Cal. 2024).

about harm from the method of obtaining data can differ from one seeking payment or exclusion solely for reproducing it. The asserted conduct, interest, and remedy must be examined together.¹⁴⁹

The March 2026 remand order in *Reddit v. Anthropic* supplies an adverse application that the ASC argument must confront. In deciding to remand, the district court identified additional obligations concerning methods of access, restricted uses, infrastructure, and related conduct. It found the asserted state claims did not reduce to copyright-equivalent copying. Alleged knowledge and conduct also mattered to its treatment of the contractual relationship. The order therefore prevents an easy inference that a mass-form or browsewrap characterization defeats formation or preemption.¹⁵⁰

The procedural limit is equally important. The court was deciding removal and remand, not imposing final liability after trial. It was not an appellate rejection of *X Corp.*, and allegations concerning privacy or technical measures cannot be carried over as facts about ASC acquisition. The relevant comparison is between the interests each claim seeks to enforce. A genuine service-integrity obligation is not the same as a fee for copying legally operative text; merely attaching the first label to the second claim should not resolve the issue.

Applied to FAF's terms, the strongest public-access case concerns a claim seeking to prohibit faithful republication that copyright law permits, particularly where the relevant clause preserves applicable law. The strongest FAF case concerns a demonstrated undertaking protecting a distinct interest: payment for a service, misuse of authenticated access, interference with infrastructure, or a specific restricted-purpose bargain. The outcome depends on forum, formation, wording, conduct, and relief. No single statement that contracts always survive, or always yield to fair use, does justice to the authorities.

5.2.3 Copyright misuse is a separate limitation

Copyright misuse limits enforcement when an owner uses copyright in a way that improperly extends its control beyond the right's proper scope. It is not a declaration that every restrictive license is void, and it does not necessarily give a claimant an affirmative entitlement to obtain a copy. *Practice Management's* exclusivity arrangement illustrates the doctrine more concretely than a general objection to prices or terms.¹⁵¹

In *Lasercomb*, the Fourth Circuit barred infringement relief because the owner's license reached beyond its software to prohibit independent development of competing software. The court did not require an antitrust violation or proof that the defendants had accepted the offending agreement. The public lost the creative work that the restriction prevented. That reasoning matters for accounting law: enforcement should protect original expression, not suppress independent tools for studying and explaining the rules. The analogy requires proof of that broader restraint, not merely the existence of a copyright license.¹⁵²

FAF's linking terms identify a concrete concern. Section 3(c)(i) permits links only to listed homepages, conditions that permission on not damaging FAF's reputation, and separately prohibits

¹⁴⁹ *X Corp. v. Bright Data Ltd.*, No. 3:23-cv-03698-WHA, ECF No. 156, at 20–21 (N.D. Cal. November 26, 2024) (Order granting in part and denying in part leave to amend).

¹⁵⁰ *Reddit, Inc. v. Anthropic PBC*, No. 3:25-cv-05643-TLT, ECF No. 60, at 4–10 (N.D. Cal. March 30, 2026) (Order granting remand; signed March 28, filed March 30, 2026).

¹⁵¹ *Practice Management*, 121 F.3d at 520–21.

¹⁵² *Lasercomb America, Inc. v. Reynolds*, 911 F.2d 970, 978–79 (4th Cir. 1990).

links to other pages. These restrictions can separate criticism or instruction from the exact accounting provision a reader needs to check. A ban on false endorsement protects a different interest from a ban on an accurate source link accompanying unwelcome criticism. Government's reliance on this framework strengthens the public interest in keeping those source links available.¹⁵³

Video Pipeline supplies both the analogy and its limit. The Third Circuit recognized that using copyright to suppress criticism could conflict with copyright policy even outside ordinary competition restraints. But it rejected the misuse defense at the preliminary-injunction stage: the record did not show that Disney's trailer-license restrictions significantly impaired public access to criticism, which remained possible elsewhere. The ASC argument must meet that objection. The relevant harm is interference with source-linked teaching, professional explanation, and scrutiny of binding rules, not a claimed right to demand that a private publisher host criticism. Evidence of enforcement and its effects would strengthen this defense; the clause alone does not establish a judicial finding of misuse.¹⁵⁴

Assessment Technologies v. WIREdata addresses using protected software to control unprotected public data. The Seventh Circuit distinguished the software's original organization from the underlying records and rejected using copyright to block their extraction. It also identified misuse concerns where copyright pressure seeks control beyond the owner's rights.¹⁵⁵ The ASC analogy is strongest for government text and other unprotected material embedded in the service. Original accounting expression requires the additional public-access analysis developed here. Misuse must identify the overreach, not assume that every included item is unprotected.

Mandatory funding and public reporting duties strengthen the institutional case, but do not prove a particular restraint. Misuse supplements the publication defense; it does not replace it.

5.2.4 Publication rights and acquisition conduct

Publication and acquisition are different acts. A defense to reproducing the rulebook does not authorize entering a restricted system or defeating a technological access control. Conversely, a dispute about one acquirer's conduct does not determine the public status of the rules.

Under the Computer Fraud and Abuse Act, *Van Buren* distinguishes access to permitted information from entry into areas off limits to the user. The Court reserved whether contractual limits alone can define that boundary. The Ninth Circuit's *hiQ* decision supports access to public information, while *Power Ventures* addresses materially different facts involving password-protected accounts. Free viewing is therefore not the test of whether a particular access method is authorized.¹⁵⁶

Section 1201 separately regulates **circumvention**, bypassing a technological protection measure without authority. *Chamberlain* requires a connection to copyright infringement; *MDY Industries* rejects that requirement for access controls. In the Second Circuit, *Corley* rejects fair use as a

¹⁵³ Financial Accounting Foundation, *FAF License Agreement* (10.10.24), supra note 4, § 3(c)(i).

¹⁵⁴ *Video Pipeline, Inc. v. Buena Vista Home Entertainment, Inc.*, 342 F.3d 191, 204–06 (3d Cir. 2003).

¹⁵⁵ *Assessment Technologies of WI, LLC v. WIREdata, Inc.*, 350 F.3d 640, 644–45, 647 (7th Cir. 2003).

¹⁵⁶ *Van Buren v. United States*, 593 U.S. 374, 378, 390 n.8 (2021); *hiQ Labs, Inc. v. LinkedIn Corp.*, No. 17-16783, slip op. at 36–37 (9th Cir. April 18, 2022); *Facebook, Inc. v. Power Ventures, Inc.*, 844 F.3d 1058, 1067–69 (9th Cir. 2016).

general permission to circumvent. An asserted access-control claim still requires the protected work, effective measure, and unauthorized act specified by the statute.¹⁵⁷

The 2024 text-and-data-mining exemption concerns controlled institutional research access, not unrestricted public delivery. It is not the basis of this Article's publication claim. State-law trespass likewise turns on system interference: *Hamidi* rejected liability without damage or impaired functioning, while *eBay* involved consumed capacity and threatened impairment. These distinctions support lawful acquisition and responsible delivery without allowing access-method disputes to substitute for the copyright analysis in Section 4.¹⁵⁸

5.2.5 Machine-readable publication

Machine-readable delivery can support preservation, comparison, accessible reading, and source-linked teaching. It is a format for the public publication defended in Section 4.2, not a separate claim that every downstream machine use is fair. Training, generated summaries, and public display involve different acts and markets. *Bartz* illustrates that separation by analyzing training, format conversion, and a retained library independently; its format-conversion holding did not permit redistribution. The ASC claim rests on public presentation of the governing rulebook itself.¹⁵⁹

6. SECURING DURABLE PUBLIC ACCESS

Reliable access requires more than a successful defense in a particular dispute. Institutions need a dependable source, identifiable versions, and clear conditions for preservation and reuse. This section connects agency publication duties to delivery arrangements, then evaluates the roles of FAF, the SEC, and Congress in securing those conditions.

6.1 Agency Publication and Reasonable Availability

6.1.1 Formal incorporation has its own requirements

Incorporation by reference is a method of making identified outside material part of a legal instrument without reproducing its full text there. For federal publication purposes, section 552(a)(1) supplies a specific rule: material reasonably available to the affected class is treated as published in the Federal Register when incorporated with the Director's approval. The provision also limits adverse reliance on matters required to be published but not published, subject to actual notice received in time.¹⁶⁰

¹⁵⁷ *Chamberlain Group, Inc. v. Skylink Technologies, Inc.*, 381 F.3d 1178, 1202–04 (Fed. Cir. 2004); *MDY Industries, LLC v. Blizzard Entertainment, Inc.*, 629 F.3d 928, 950–52 (9th Cir. 2010) (amended 2011); *Universal City Studios, Inc. v. Corley*, 273 F.3d 429, 443–44 (2d Cir. 2001); Circumvention of copyright protection systems, 17 U.S.C. § 1201(a)(1), (3) (2024).

¹⁵⁸ Exemption to Prohibition on Circumvention of Copyright Protection Systems for Access Control Technologies, 89 Fed. Reg. 85437 (codified at 37 C.F.R. § 201.40), 85443, 85447 (October 28, 2024); *Intel Corp. v. Hamidi*, 30 Cal. 4th 1342, 1347–48 (Cal. 2003); *eBay, Inc. v. Bidder's Edge, Inc.*, 100 F. Supp. 2d 1058, 1071–72 (N.D. Cal. 2000).

¹⁵⁹ *Bartz v. Anthropic PBC*, No. 4:24-cv-05417 (Order on Fair Use), ECF No. 231, at 9–11, 18–23, 31–32 (N.D. Cal. June 23, 2025) (Alsup, J.).

¹⁶⁰ Public information; agency rules, opinions, orders, records, and proceedings, 5 U.S.C. § 552(a)(1) (2024).

Approval, availability, and actual notice address different questions: legal publication, access, and the consequences of a publication defect. They do not automatically extinguish copyright, but private ownership does not excuse the agency's publication and availability duties.

Part 51 gives the mechanism greater precision. An agency must identify the publication, explain access, obtain approval, and ensure a copy is on file. The incorporation is limited to the approved edition; future revisions are not included automatically. That is a critical difference from describing a general duty to follow an evolving professional framework. The Article's integrated-rulebook argument concerns the substantive scope of such a duty. It does not assert that every GAAP reference has satisfied Part 51.¹⁶¹

A link to the latest Codification may omit an edition incorporated years earlier. Readers need the approved text even when professional practice has moved on. A current website can thus be incomplete as a repository of governing versions.

6.1.2 The Education Department examples

The Education Department's financial-reporting and financial-responsibility rules formally incorporate specific ASC material and an Accounting Standards Update for defined purposes. They demonstrate use of the formal mechanism, not merely a general GAAP reference.¹⁶²

They also demonstrate why scope cannot be inferred from a title alone. A rule may incorporate related-party guidance while imposing disclosure obligations that go beyond the accounting standard. Another provision may identify presentation or lease material for a particular financial-responsibility calculation. The adopted text, the regulatory supplement, and the covered institution must be distinguished. The external standard is part of the legal analysis, not a replacement for reading the surrounding rule.

These approvals neither establish formal incorporation of the entire ASC nor limit the broader conformity argument to separately approved Topics. Formal incorporation and general conformity duties coexist, with different procedural and version consequences.

Assessing availability requires checking the filed editions and approval packages, not only the regulation's citation. The source review here does not establish the completeness or accessibility of those filed materials.

6.1.3 Availability is more than a link, but not necessarily open licensing

The Office of the Federal Register's 2014 rulemaking rejected a categorical requirement that all incorporated material be freely available online. It instead required agencies to discuss reasonable availability and explain how interested persons could obtain the material. This is important adverse authority for a claim that existing incorporation rules already compel an unrestricted public license. The current regulatory approach is more contextual than that claim allows.¹⁶³

¹⁶¹ Incorporation by Reference, 1 C.F.R. §§ 51.1(f), 51.3(b), 51.5(b) (2026).

¹⁶² 34 C.F.R. § 668.23(i); Financial ratios, 34 C.F.R. § 668.172(e) (2022) (eCFR text as of title 34 issue date 2026-09-09); Alternative standards and requirements, 34 C.F.R. § 668.175(i) (2023) (eCFR text as of title 34 issue date 2026-09-09).

¹⁶³ Office of the Federal Register, *Incorporation by Reference*, Final rule 79 Fed. Reg. 66267, National Archives and Records Administration, November 7, 2014, URL: <https://www.govinfo.gov/content/pkg/FR-2014-11-07/pdf/2014-26445.pdf> (visited on 09/11/2026) at 66268.

Part 51 nevertheless requires more than a place to look. Section 51.7(a)(3) requires a publication to be

reasonably available to and usable by the class of persons affected.¹⁶⁴

Section 51.9(b)(4) requires an official showing of where copies can be examined and readily obtained “with maximum convenience to the user.”¹⁶⁵ The agency must address the reader’s ability to use and obtain the text, not merely identify its owner.

The Office’s Handbook states the practical consequence:

Read-only access, on its own, may not meet the reasonably available requirement at the final rule stage of rulemaking since those who must comply with the regulations may need full access to an online version or their own copy of the material.¹⁶⁶

That is operational guidance, not a general copyright license. But it directly supports the distinction at the heart of this Article: reading a rule once and possessing a dependable copy for compliance are different forms of access.

The Handbook also refuses approval of a third-party website or a page with dynamically generated content. It requires a dated, identified version and an electronic copy for the Office’s records. A database’s data may qualify as it exists on a specified date even though the database application does not. These limits concern the object of formal incorporation; they do not prohibit a website from displaying an approved, fixed standard. For the ASC, the question is whether a specific edition was approved and remains available, not whether the viewer uses modern web technology. A changing viewer cannot substitute for the approved text or automatically amend that incorporation.¹⁶⁷

The fair-use treatment of reading rooms in Section 4.2 addresses a different legal question. Here the issue is the agency’s compliance with publication and availability requirements, not an automatic license to copy.

The Administrative Conference’s recommendations and the standards policy reflected in Office of Management and Budget Circular A-119 further illustrate the balance. Agencies can seek access arrangements while using outside expertise and accounting for the economics of standards production. But the policies governing voluntary consensus technical standards should not be assumed to apply identically to FASB’s statutory recognition arrangement. The accounting case requires attention to its own institutional and funding rules.¹⁶⁸

¹⁶⁴ 1 C.F.R. § 51.7(a)(3).

¹⁶⁵ Id. § 51.9(b)(4).

¹⁶⁶ Office of the Federal Register, *Incorporation by Reference Handbook*, Handbook, National Archives and Records Administration, June 2023, URL: <https://www.archives.gov/files/federal-register/write/handbook/ibr.pdf> (visited on 09/11/2026) at 9, § III.E.

¹⁶⁷ Id. at 9–10, §§ III.F–G.

¹⁶⁸ Administrative Conference of the United States, *Recommendation 2011-5, Incorporation by Reference*, Recommendation 77 Fed. Reg. 2257, Administrative Conference of the United States, January 17, 2012, URL: <http://www.govinfo.gov/content/pkg/FR-2012-01-17/pdf/2012-621.pdf> (visited on 09/11/2026) ¶¶ 1–4; Office of Management and Budget, *Circular No. A-119: Federal Participation in the Development and Use of Voluntary Consensus Standards and in Conformity Assessment Activities*, Circular, Executive Office of the President, January 22, 2016, URL: https://www.nist.gov/system/files/revised_circular_a-119_as_of_01-22-2016.pdf (visited on 09/11/2026) at 20–21, § 5(f).

6.1.4 Consequences of a publication defect

Section 552(a)(1) protects a person from adverse reliance on matter required to be published but not published, except where that person has actual notice in time. It reaches substantive rules and generally applicable agency interpretations. If an agency makes an external accounting requirement the basis of an adverse decision, the affected party can ask whether the agency published that requirement or satisfied the formal incorporation alternative. A link does not by itself answer either question.¹⁶⁹

Appalachian Power illustrates the distinction:

reasonable availability is not a substitute for publication; it is one of two conjunctive requirements¹⁷⁰

The other requirement was the Director's approval. The agency could not replace actual notice with an opportunity to find a document when it had not identified which information in that document would bind the petitioners. The court held the regulation unenforceable for defective publication and allowed the agency to act again on remand.

The ASC application requires an instrument-specific showing. The present record does not establish whether the SEC ever sought OFR approval for the entire Codification; the identified Education Department approvals do not answer that question. An agency may contend that its published GAAP rule already states the obligation and that the external text identifies a recognized accounting framework rather than an unpublished agency rule. The challenger must confront that position and any proof of actual notice. The Article argues that government reliance on the ASC's operative content cannot make the reader's practical need for that content disappear merely by describing the reference as interpretive.

Nguyen supplies a further limit. Although an agency instruction should have been published, the Ninth Circuit denied relief because it did not adversely affect the claimant's substantive rights. The court examined changes to existing practice, departure from ordinary regulatory meaning, and binding limits on official discretion. An ASC-based challenge must identify how the disputed requirement affected the claimant's rights or obligations; finding an unpublished document is not enough.¹⁷¹

This route supports a demand for adequate publication and a defense against particular enforcement. It does not itself grant every third party a copyright license. The public-publication defense rests on the copyright analysis in Section 4. The administrative argument reinforces why dependable access to the governing text is a legal concern, not merely a publisher's service preference.

Formal incorporation thus supplies both support and discipline. It supports the proposition that outside accounting text can be legally operative and must be meaningfully available. It disciplines claims about versions, approval, and remedies. A durable access arrangement should satisfy those concerns without requiring each reader to litigate an enforcement defense merely to retain the rule governing a prior reporting period.

¹⁶⁹ 5 U.S.C. § 552(a)(1)(D)–(E).

¹⁷⁰ *Appalachian Power Co. v. Train*, 566 F.2d 451, 455–57 (4th Cir. 1977).

¹⁷¹ *Hung Hy Nguyen v. United States*, 824 F.2d 697, 699–702 (9th Cir. 1987).

6.2 Delivery models that separate text from services

The practical choice is not between private standards and public access. Existing arrangements separate authoritative text, research services, and reuse permissions in different ways. Three comparisons identify choices available for an ASC access arrangement; none supplies a substitute for the United States legal analysis.

GARS is the closest institutional comparison because it shares FAF's publishing structure. Before the joint free-access change described in Section 2.4, GASB's 2013 launch already offered the full Professional View content through Basic View with fewer navigation features. That separation shows how a standard setter can distinguish the text from research tools. The joint license also shows why free viewing alone leaves the reuse problem unresolved. The appropriate lesson is shared delivery and clear permission, not a claim that every GARS document has the ASC's legal status.¹⁷²

The European Union and India demonstrate public delivery of accounting text alongside the legal command. EU endorsement instruments reproduce specified international accounting standards for covered accounts. India's 2015 rules publish the selected standards, including scope and transition provisions, in a Gazette appendix. These arrangements make the legally selected text identifiable independently of the standard setter's latest commercial product.¹⁷³ The IFRS Foundation describes a copyright-waiver arrangement supporting EU publication and translation. That description supports negotiated delivery, not an inference of unlimited downstream permission under an unpublished agreement.¹⁷⁴

The Court of Justice's *Public.Resource.Org and Right to Know* decision adds a legal-access rationale: the requested standards' legal effects established an overriding public interest in disclosure. The holding concerns access to documents, not United States fair use. It nevertheless demonstrates why the legal role of a standard can change the public justification for its disclosure.¹⁷⁵

The Uniform Commercial Code supplies the useful counterexample. Its private drafting project receives publication royalties, and its model text is sold. That practice supports FAF's argument that private drafting and publication income can coexist with legal adoption. It does not establish an exclusive right to publish the resulting state statutes. The distinction is between funding a drafting project and controlling public use of its legally adopted output.¹⁷⁶

¹⁷² Governmental Accounting Standards Board, *GASB Announces the Launch of the Governmental Accounting Research System Online*, News release; Internet Archive snapshot 20220627200822, March 14, 2013, URL: https://web.archive.org/web/20220627200822id_/https://www.gasb.org/page/getarticle?uid=gasb_NewsRelease03-14-13Body_0228221200 (visited on 09/12/2026); Financial Accounting Foundation, *FAF License Agreement (10.10.24)*, supra note 4, §§ 1(b), 2–3.

¹⁷³ Regulation (EC) No 1606/2002 of the European Parliament and of the Council of 19 July 2002 on the application of international accounting standards, Regulation (EC) No 1606/2002 (2002); Commission Regulation (EC) No 1126/2008 of 3 November 2008 adopting certain international accounting standards in accordance with Regulation (EC) No 1606/2002 of the European Parliament and of the Council, Commission Regulation (EC) No 1126/2008, consolidated CELEX 02008R1126-20230101 (2008); Companies (Indian Accounting Standards) Rules, 2015, G.S.R. 111(E), rules 3–4 and Annexure (February 16, 2015).

¹⁷⁴ IFRS Foundation, *European Union: IFRS Accounting Standards Jurisdiction Profile*, October 2, 2024, URL: <https://www.ifrs.org/use-around-the-world/use-of-ifrs-standards-by-jurisdiction/view-jurisdiction/european-union/> (visited on 09/11/2026).

¹⁷⁵ *Public.Resource.Org Inc. and Right to Know CLG v. European Commission*, Case C-588/21 P, ECLI:EU:C:2024:201, ¶¶ 85–90 (C.J.E.U. March 5, 2024) (Grand Chamber).

¹⁷⁶ Uniform Law Commission, *Uniform Commercial Code*, 2026, URL: <https://www.uniformlaws.org/acts/ucc> (visited on 09/11/2026).

These comparisons support a concrete design: secure the authoritative text and version history, permit preservation and sharing, and leave independent commentary and tools available for commercial development. The terms must state those permissions; a downloadable file or retained copyright notice alone does not define them.

6.3 Options for Durable Public Access

6.3.1 *What an access arrangement must accomplish*

Public access must cover the complete current substantive Codification defined in Section 3.3. Delivery should identify authoritative text, support human and machine reading, permit preservation and sharing, and record corrections. These proposals make the public right usable.

Access must also preserve history through dated releases, effective dates, and visible corrections. Replacing old text cannot establish which rules governed a past reporting period. Current releases must remain distinguishable from legally specified editions under federal incorporation rules.¹⁷⁷

Maintaining and delivering reliable standards requires resources. FAF need not supply unlimited computing capacity or personal support without charge. Reasonable service limits and paid tools can coexist with public reuse. The arrangement should distinguish uses of a received copy from access to the publisher's systems.

6.3.2 *Voluntary permission and negotiated access*

FAF could grant a public license permitting faithful copying, sharing, preservation, and format conversion of the substantive standards. It could require attribution, version labels, and marked changes. Permissions for released versions should survive changes to the service or its terms.

The shared delivery history in Section 2.4 supplies an institutional starting point; permission for public reuse is the next step.

A proposed feed of dated releases would give libraries, educators, and competing services stable paragraph identifiers, dates, change lists, and a way to check received files against published releases. Each permission should identify the content it covers; FAF cannot grant rights owned by others.

The arrangements in Section 6.2 demonstrate the separation of legal text from services. A public feed of dated releases would apply that separation to the substantive ASC.

An open license may reduce product revenue and enable competing services. FAF could identify core maintenance costs and services valuable without exclusive control over copying. Section 7219 preserves publication revenue; it does not require exclusive products. Mandatory support fees make funded public access possible, not costless.¹⁷⁸

The SEC's Investor Advisory Committee provides a forum for extending the access work described in Section 2.4 from viewing to durable reuse.

The NFPA litigation illustrates a negotiated outcome, not a judicial resolution of the whole access question. The March 2025 dismissal order recorded agreement to resolve the case while final settlement and license documents were being negotiated. NFPA's litigation consultants later reported that the settlement granted UpCodes a license to certain standards. Neither source reviewed here discloses the financial terms. The outcome shows that licensing can end litigation; it does

¹⁷⁷ 1 C.F.R. pt. 51.

¹⁷⁸ 15 U.S.C. § 7219.

not establish the price of public-access rights or a precedent requiring every republisher to buy permission.¹⁷⁹

Negotiation can resolve permission, delivery, and funding together, but depends on agreement. Express permissions should preserve statutory defenses, not purport to define the limits of fair use.

6.3.3 *Independence review and licensing transparency*

Public access should not depend on proving compromised independence. A publication can be fair use even when the licensor's finances raise no independence concern. Section 7219(j) supplies a separate reason to examine commercial dependence: Congress permits additional revenue only subject to the Commission's judgment about actual and perceived independence. The provision addresses jeopardy, not only a completed instance of biased standard setting. Its preventive language supports inquiry before a particular accounting decision can be shown to have changed.¹⁸⁰

The review practice established in Section 2.5 supplies an administrative home for that inquiry. The next step is a public explanation of how licensing relationships are assessed, not an assumption that oversight has been absent.

The Commission should examine dependence on major licensees, renewal and termination rights, redistribution arrangements, and any connection between commercial relationships and standard-setting decisions. The account-level evidence in Section 2.4 establishes commercial activity, not the concentration or contractual leverage of any particular licensee. The review must examine those relationships directly.

The safeguards described in Section 2.5 provide concrete standards against which to assess implementation. The review should examine relevant disclosures, recusals, minutes, and any waivers, rather than infer influence from professional experience alone.

The SEC should publish a reasoned account of how licensing dependence is assessed, with aggregate information where legitimate confidentiality limits contract disclosure. Durable public reuse could reduce dependence on discretionary permissions while leaving firms free to sell tools and advice. That is an institutional benefit to evaluate, not proof that open licensing would cure every independence risk. Independence also requires protection against government pressure on technical accounting judgments.¹⁸¹

6.3.4 *Regulatory conditions and express legislation*

A negotiated arrangement differs from an SEC-imposed condition. Section 19(b) sets criteria for recognizing a private standard setter, and Congress preserved the Commission's accounting authority. Section 7219 supplies a funding structure and Commission review functions. These provisions establish a substantial institutional connection. They do not expressly direct the Commission to require a universal, irrevocable public copyright license.¹⁸²

¹⁷⁹ *National Fire Protection Association, Inc. v. UpCodes, Inc.*, No. 2:21-cv-05262-SPG-E, ECF No. 309, at 1–2 (C.D. Cal. March 21, 2025) (order retaining limited jurisdiction); Analysis Group, *National Fire Protection Association, Inc. v. UpCodes, Inc., et al.* URL: <https://www.analysisgroup.com/Insights/cases/national-fire-protection-association-inc-v-upcodes-inc-et-al/> (visited on 09/12/2026).

¹⁸⁰ 15 U.S.C. § 7219(j).

¹⁸¹ U.S. Securities and Exchange Commission, *SEC Release No. 33-8221*, supra note 9, Part II.D.

¹⁸² 15 U.S.C. § 77s; 15 U.S.C. § 7218; 15 U.S.C. § 7219.

Recognition concerns FASB's standard-setting role; a negotiated license of FAF's rights requires FAF's participation. The independence condition supports the review proposed above, but does not itself authorize an order requiring FAF to license the ASC to everyone.¹⁸³

The SEC should pursue durable access through negotiation and any conditions its statutory authority supports. A compulsory condition would need a stated legal basis, an appropriate procedure, and a record connecting it to financial reporting and the public interest. The central objection is that recognition and fee-review powers do not authorize restructuring private rights, especially where Congress preserved publication revenue. Formal incorporation duties support publication of particular editions, but do not themselves grant a general reuse license.¹⁸⁴

An imposed license beyond existing public-use rights raises the Takings Clause question analyzed in Section 4.1. The funding history in Section 2.2 supports scrutiny of commercial dependence, but establishes neither surrender of copyright nor compensation for a compulsory license. A condition must identify the rights it burdens, its statutory basis, and any compensation required. Recognizing fair use instead enforces copyright's existing boundaries; it does not acquire new rights from FAF.¹⁸⁵

Congress could expressly define covered standards, permitted uses, historical versions, and publisher duties, distinguishing core text from commentary and third-party works. It could assign preservation responsibilities and fund delivery and maintenance. These would be new legislative choices.

Congress could fund a durable public license for the complete current substantive Codification and updates, securing delivery, maintenance, and rights beyond already lawful uses. Valuation must account for fair use and the rights actually held. An imposed license also requires authority and analysis of compensation. *Practice Management's* royalty discussion offers a possible remedy, not a settled program.¹⁸⁶

The existing-law defense does not await payment. Negotiation or legislation can secure reliable access without making each reader litigate. Paying for certainty and service does not concede that the public previously lacked the right to use the law.

The Pro Codes Act proposals, H.R. 4072 and S. 4145, would preserve copyright in qualifying incorporated standards through free online display with specified features. They do not require standard setters to permit downloading, printing, or redistribution. Their technical-standards definitions also require separate analysis before application to FASB's statutory arrangement. This display-centered model is not the reform the Article recommends. Keeping a publisher's copyright need not mean allowing that publisher to prevent students from saving the rules or professionals from sharing the sources of their advice. A reform aimed at meaningful access should secure the complete current substantive Codification, permit faithful preservation and sharing, and protect the public from withdrawal of access. The pending proposals do not moot that argument or make their approach existing law.¹⁸⁷

Ryan Jarratt's proposed revision offers government distribution without login barriers and permission to download and print. It is not a read-only proposal. The ASC proposal goes further by

¹⁸³ 15 U.S.C. § 77s(b); 15 U.S.C. § 7219(j).

¹⁸⁴ 5 U.S.C. § 552(a)(1); 1 C.F.R. pt. 51.

¹⁸⁵ *CCC*, 44 F.3d at 74; 15 U.S.C. §§ 7219(c)(1), (j).

¹⁸⁶ *Practice Management*, 121 F.3d at 519.

¹⁸⁷ Pro Codes Act, H.R. 4072, 119th Cong. (2025) (as introduced June 23, 2025); Pro Codes Act of 2026, S. 4145, 119th Cong. (2026) (as introduced March 19, 2026).

expressly securing faithful sharing and independent publication of the complete current substantive ASC.¹⁸⁸

Legislation should define coverage through the recognized authoritative framework, with express exclusions, version rules, and treatment of existing agreements. Limiting coverage to separately incorporated paragraphs would miss GAAP's integrated legal role. Extending it to every private work mentioned anywhere in law would exceed the case developed here.

6.3.5 *Judicial relief requires a concrete dispute*

A defense to infringement does not guarantee an advance judicial ruling. The Declaratory Judgment Act requires an actual controversy within the court's jurisdiction, not an abstract question about public access.¹⁸⁹

MedImmune required a substantial, immediate, and real dispute between adverse parties. The patent licensee did not need to breach or terminate its license before seeking a declaration; discretion and merits remained for further proceedings.¹⁹⁰ This rejects a categorical breach-first requirement, not the need to establish a live dispute over a particular publication.

A suit needs a record of the publication or planned conduct, asserted rights, accepted terms, and adverse positions, with support for jurisdiction and venue. The requested declaration should identify the material and uses at issue. Absence of enforcement proves neither permission nor an actual controversy.

The distinction between merits and interim relief in Section 4.1 should likewise govern the requested judicial remedy.

6.3.6 *Publication practices that support a defined public purpose*

A publisher can improve the factual basis for its position without claiming that good practices create immunity. It should identify the edition and source, preserve useful notices, separate original text from commentary, and maintain a correction history. Claims about completeness, currency, and accuracy should match what has actually been checked. A statement that an edition is unofficial should be visible and consistent with the rest of the service's presentation.

These practices address real risks. In the Second Circuit's 2022 *ICC v. UpCodes* decision, claims about accuracy and the integration of amendments supported further litigation under false-advertising law. That was not a copyright holding, but it is a warning against unsupported promises about a legal-text service.¹⁹¹ Accurate reproduction and honest labeling strengthen the law-informing purpose; they do not cure an unlawful acquisition or erase an enforceable separate promise.

The preferred institutional result is thus clear permission for a defined substantive body, reliable dated delivery, and accountable maintenance. Judicial defenses remain important where permission is contested. They should not be the only means by which ordinary readers can learn whether they may preserve and share the standards used to assess their conduct.

¹⁸⁸ Ryan Jarratt, *An Updated Pro Codes Act: Enhancing Public Access to Privately Copyrighted Laws*, 125 Columbia Law Review 1735, 1762–63, 1768–71 (2025), URL: <https://www.columbialawreview.org/content/an-updated-pro-code-s-act-enhancing-public-access-to-privately-copyrighted-laws/> (visited on 09/11/2026).

¹⁸⁹ Creation of remedy, 28 U.S.C. § 2201 (2024).

¹⁹⁰ *MedImmune, Inc. v. Genentech, Inc.*, 549 U.S. 118, 127, 136–37 (2007).

¹⁹¹ *International Code Council, Inc. v. UpCodes Inc.*, 43 F.4th 46, 57–64 (2d Cir. 2022) (Sack, J., Nos. 21-826, 21-827).

7. CONCLUSION

For entities subject to GAAP reporting duties, access to the ASC's authoritative framework is part of access to the rules governing compliance. The resulting public need is for the governing rulebook, not a publisher's permission to view it temporarily. Students must be able to preserve assigned rules, teachers to explain them, and accountants to show colleagues and clients the basis of advice. Those activities are how accounting law becomes understandable and usable.

This Article defends faithful public publication of the complete current substantive Codification. The integrated-rulebook argument establishes its scope; the standards cases and fair-use analysis explain why its legal role supports reproduction even if private copyright remains. Current publication can compete with licensed access. But withholding current rules to avoid that competition would deny precisely the information present compliance requires. Market effects must be assessed alongside that public function and the statutory funding structure, not treated as a veto over access.

The institutional history also identifies responsibility. FASB produces the standards, FAF controls licensing, and government imposes conformity. Mandatory funding and SEC oversight make public access an institutional design question as well as a litigation defense. The SEC should explain how licensing relationships satisfy the independence condition, and FAF and public agencies should secure dated delivery and dependable reuse permissions. Negotiated arrangements or legislation can provide certainty beyond existing defenses; those defenses do not await a new license or payment.

The conclusion is therefore both legal and practical. The public-law role of the substantive ASC supplies a strong basis for faithful reproduction. Its delivery should make that use dependable without requiring each reader to risk a dispute over saving, sharing, or linking to the governing text. The complete current substantive ASC must be available for the public to preserve, share, study, and apply.

DISCLOSURES

Data availability

Derived research data, source references, classification rules, and a count-checking script accompany the PDF and narrated reading at <https://github.com/mjbommar/closing-the-gaap>. Third-party publications and restricted source collections are not redistributed; the repository identifies their sources and the limits of reproducing the analysis from the public materials.

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Competing interests

The author publishes a free, noncommercial student edition of the Accounting Standards Codification and has an interest in public access to accounting standards.

AI assistance

See the disclosure accompanying the abstract.

A. FEDERAL GAAP REFERENCES: CENSUS METHOD AND LIMITS

The census is a dated inventory of federal references to GAAP, FASB, and the Codification. It is not a count of identical legal duties or a measure of the share of the ASC that has legal force. The legal conclusions in Section 3 rest on reading particular instruments and connecting their commands to the authoritative framework. The inventory helps locate those instruments and shows why an issuer-only account of legal dependence would be incomplete. Its scope is federal-only by design: state accountancy rules and private professional requirements discussed in Section 3 are not included in its counts.

A.1 Corpus, search, and classification

The September 11, 2026 collection used the electronic Code of Federal Regulations search and full-text services, and the Government Publishing Office’s govinfo search service. The statutory search used the 2024 Code collection, with separately identified manual additions. The regulatory collection used available title-specific issue dates. Retrieval on a common day does not mean every underlying source had been updated through that day.¹⁹²

The primary exact-phrase queries were generally accepted accounting principles, GAAP, Financial Accounting Standards Board, FASB, Accounting Standards Codification, and FASB ASC. Variant queries tested U.S. GAAP and longer or reordered forms of the accounting-principles phrase. The request files preserve the quoted search strings. Variant searches were a limited check for missed phrasing, not proof that the search found every relevant provision.

The regulatory search returns historical change events. The pipeline therefore removed repeated hits using the title, structure type, section, part, and appendix identifiers before fetching full section text. It extracted matching sentences and assigned preliminary categories through text-pattern rules. Mandatory language and compliance phrases produced binding candidates; definitions and permissive language received different labels. A section-level priority rule selected a primary category where several kinds of sentence appeared. These labels organize research. They do not substitute for reading scope provisions, exceptions, or effective dates.

The table is derived from the unique citation and title fields and the section-level classification in the preserved census files. Agency groupings come from chapter headings, with a title fallback. Some headings describe subjects rather than distinct agencies. The groupings therefore cannot support a claim that this many separate regulators impose GAAP duties.

A.2 Review, examples, and missing coverage

Source review covered an initial set of provisions and a further sample, not every classified row. The credit union definition in 12 C.F.R. § 702.2 is an example of a directly examined accounting dependency. The Education Department’s incorporation clauses provide a different legal route. Those clauses identify Topic 850 in sections 668.23(i) and 668.175(i), and Topic 205 and

¹⁹² *eCFR Search API, v1*, Office of the Federal Register / Government Publishing Office, 2026, URL: <https://www.ecfr.gov/api/search/v1/results> (visited on 09/11/2026); *eCFR Versioner API, v1 (full section text)*, Office of the Federal Register / Government Publishing Office, 2026, URL: <https://www.ecfr.gov/developers/documentation/api/v1> (visited on 09/11/2026); *govinfo Search API*, U.S. Government Publishing Office, 2026, URL: <https://api.govinfo.gov/search> (visited on 09/11/2026).

TABLE 1: The inventory records references and candidate duties, not universal mandates

Measure in the frozen collection	Count
Distinct CFR section or appendix citations	785
CFR titles represented	39
Chapter-based agency groupings, not an agency census	92
CFR citations classified as binding candidates	472
CFR citations classified as definitions	70
Distinct USC citations, including manual additions	83
USC titles represented	16
USC citations classified as binding candidates	73

Update 2016-02 in section 668.172(e). They are not merely search hits containing both a private organization's name and the word incorporation.¹⁹³

The main limitations concern missed provisions and overinclusive labels. Exact-phrase queries can miss different wording. Regulatory appendices and some sections lack a successful full-text retrieval in this collection; their rows are marked as based only on search excerpts. Historical search matches do not alone prove that the matching language remains in force. Automatic sentence splitting can break citations or lists incorrectly. Mandatory words can occur in a passage whose duty is narrower than the classifier suggests. A reference may permit GAAP without requiring it. Each legal use of a row therefore needs its own source check.

The statutory collection is known to under-cover Title 26: it contains no Internal Revenue Code provisions, including the tax-accounting provisions examined separately in Section 3. Its 83 citations across 16 titles therefore do not measure the reach of tax conformity. The tax argument rests on the statutory text, not these search results.

The statutory collection also has a date limitation. The manual additions include a provision enacted after the annual source edition, but there was no complete search of all later enactments. The GENIUS Act entry is enacted law whose relevant requirement was not yet effective at the research cutoff. It must not be counted as an existing compliance duty merely because it appears in the inventory. The recorded total is a count of collected citations, not a validated floor for the number of currently operative mandates.¹⁹⁴

The Federal Register series counts documents mentioning selected phrases by year. It does not count separate regulatory commands. One document may discuss many provisions, and a proposed rule is not a final duty. The series is supporting research rather than an independent measure of legal adoption.¹⁹⁵

¹⁹³ 12 C.F.R. § 702.2; 34 C.F.R. § 668.23; 34 C.F.R. § 668.172; 34 C.F.R. § 668.175.

¹⁹⁴ Requirements for issuing payment stablecoins, 12 U.S.C. § 5903(a)(10)(A)(i) (2025) (GENIUS Act § 4, Pub. L. No. 119-27, 139 Stat. 419, 425 (July 18, 2025)). DELAYED EFFECTIVE DATE: the earlier of 18 months after July 18, 2025 (Jan. 18, 2027) or 120 days after final implementing regulations. No final implementing regulation existed as of Sept. 11, 2026.)

¹⁹⁵ *Federal Register API, v1 (documents.json)*, Office of the Federal Register / National Archives and Records Administration, 2026, URL: <https://www.federalregister.gov/api/v1/documents.json> (visited on 09/11/2026).

A.3 Codification composition is a separate dataset

The frozen parsed collection records 97 topics, 540 subtopics, and 23,898 paragraphs. Its labels identify 437 SEC sections containing 921 paragraphs, and it records 1,287 glossary terms. These measures describe this collection, not every historical or future edition. The public aggregate table records the derivations; the underlying standards collection is not redistributed. These counts do not establish copyright ownership or the authoritative status of each item.¹⁹⁶

The public research repository provides the derived inventory, source locations, classification rules, a count-checking script, and file hashes for the released files. Restricted source collections and third-party publications are excluded. Readers can reproduce the inventory counts from the released tables. The release does not include the collection tools or source archive. Codification composition is supplied as aggregate counts, without the underlying standards text. Confirming legal classifications requires reading the cited instruments. Neither counting nor classification alone resolves the integrated-rulebook or fair-use argument.

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¹⁹⁶ Michael J. Bommarito II, *Accounting Standards Codification: Aggregate Composition Dataset, September 2026*, September 2026, URL: <https://github.com/mjbommar/closing-the-gaap/blob/main/data/codification-composition.csv>.

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